

THE BURGER COURT JUDICIAL DATABASE:
(1969-1985 TERMS)

DOCUMENTATION

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INTRODUCTION

The database whose contents are described in this codebook parallels that of the *Vinson-Warren Court Database, 1946-1968 Terms*, by including the conference vote data of the Burger Court justices; i.e., primarily their preliminary votes granting or denying certiorari or noting probable jurisdiction, as well as the conference vote on the merits, for all cases in which at least one justice wrote an opinion. Except for the justices' preliminary and conference votes, it also parallels the data in the *Original United States Supreme Court Judicial Database* that extends from the beginning of the Warren Court in 1953 and continues through the end of the most recent term of the current Court. This database, then, is the third of three overlapping databases. It differs from the other two in that it contains the preliminary and conference vote data of the Burger Court, along with its final vote data.

Because of the large number of codes contained in the administrative agency, parties, law, and issue variables, the list of variables in the documentation of all three databases is the same even though some of the codes do not appear in this database.

Be aware, however, that the variables and the coding in this database do not completely conform to those of the Vinson-Warren Courts. Without some emendation of variables and codes, they cannot be merged.

Also note that one variable, *relist*, is not referenced in the documentation. This variable requires compilation separate from the other variables in this database and, as a result, will be undertaken as an independent project. It and its entries should not be used in any analyses.

Although one normally acknowledges others' assistance at the end of an introduction, that rendered by Lee Epstein warrants up front recognition. In joint endeavors, of which this database is one, Lee typically takes charge and exerts magnificent task leadership. She assigns responsibilities, rides herd on their performance, and skillfully and efficiently puts all the pieces together into the final product. In this endeavor, however, Lee did what, in other contexts, is defined as the 'grunt' work. She gathered a group of her students, traipsed off to the Library of Congress, and painstakingly and systematically copied the docket and assignment sheets of Justices Brennan, Douglas, and Marshall, along with the assignment sheets of Chief Justice Burger. She and her students then ventured into the heart of Appalachia and did the same with respect to the papers of Justice Powell. Without the monotonous drudgery that that labor entailed, this database would not exist.

I have relied most heavily on Justice Powell's materials

because he provides much more information about the justices' preliminary and conference votes than the others. For the terms prior to Powell's confirmation in December, 1971, I relied more or less equally on Brennan and Douglas. The cursory and sketchy nature of their docket sheets, plus Brennan's erasures and overwriting of initial votes, made them markedly less useful than the work of Powell. Justice Marshall made his materials available only for the last term of the Burger Court, 1985.

Note that a few records with a report vote lack either a preliminary and/or a merits vote. This likely results because the case was held until a related case was considered and no separate vote was taken in the case whose data are lacking.

Also note that I count <join 3' and <join 4' as granting the petition at issue even though these <join' votes did not produce the minimum necessary to grant the petition. Further note that some <join 3' votes make no sense as said justice -- voting in order of seniority -- knows that at least three justices have already voted to grant. The explanation for this would seem to be that such justices have determined their vote in advance of the conference and stick to it even though superfluous.

Finally, where two preliminary votes taken within a span of two weeks produce an identical vote, I count it as only one. These are sufficiently numerous that the redundant coding would have proven to be onerous and of not much use. Compilation of <relisting,' which is currently being undertaken, will identify these instances and incorporate the relevant behaviors into this database.

This introduction assumes that the reader is familiar with the contents and use of the *Original United States Supreme Court Judicial Database*. If not, skip this section and turn to the general introduction on p. v.

In order to accommodate the justices' conference votes, the database contains eight vote variables. The first, identified by the number '1' indicates whether the case arose on certiorari or appeal, the vote of the participating justices, the date the vote was cast, the direction of the vote, and whether the petitioning party won. Inasmuch as direction does not pertain to votes to hear cases, no direction (liberal, conservative, indeterminate) applies to the justices' votes. The second set of votes and associated variables -- the conference vote on the merits -- is identified with the number '2,' while the third set -- the report vote and its variables -- is largely without numerical identification. These three are dedicated fields: they invariably contain the **final** preliminary, merits, and report vote taken in the case in question. The remaining vote fields -- '4' through '8' -- contain other votes cast in the case in chronological order.

Finally, my own reference to and use of the database reveals

errors. I correct them as they come to my attention. Hence, users should periodically check the Michigan State University judicial center website

www.polisci.msu.edu/pljp

so they may acquire the most current version of the database.

I urgently request users to contact me about any real or apparent errors or omissions in the database. Though the reliability check indicated few coding errors, some undoubtedly remain. We would much appreciate being so informed. Other data entries may simply make no sense. Please call these to our attention also. I may be contacted through the following addresses:

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In addition to Lee Epstein, I wish to thank Jeff Segal of the State University of New York at Stony Brook for continuing to respond to my inquiries and to make his own suggestions about all phases and aspects of the database. His counsel is unfailingly keen and wise. Two of my Ph.D.'s have alleviated my less than efficient use of SPSS: Sara C. Benesh, formerly of the University of New Orleans, and now of the University of Wisconsin -- Milwaukee, and Wendy L. Martinek of the State University of New York at Binghamton. Along with Lee Epstein and her students, this database would not have seen the light of day without the wholehearted and unstinting support and assistance provided by the Archivist at the Washington and Lee University School of Law, John N. Jacob, and the financial support of the Law and Social Science Program of the National Science Foundation, grant numbers SBR-9614000 and SBR-9614130.

GENERAL INTRODUCTION

The more than 326 variables in this database concern six distinct aspects of the Court's decisions: 1) identification variables -- e.g., citations and docket numbers; 2) background variables -- e.g., how the Court took jurisdiction, origin and source of case, the reason the Court granted cert; 3) chronological variables -- e.g., date of decision, term of Court, natural court; 4) substantive variables -- e.g., legal provisions, issues, direction of decision; 5) outcome variables -- e.g., disposition of case, winning party, formal alteration of precedent, declaration of unconstitutionality; 6) voting and opinion variables -- e.g., how individual justices voted, their opinions and interagreements, the direction of their votes.

Except for the voting and opinion variables, the others appear in the same order in both this codebook and the database. Because of the multiplicity of votes cast in each case, I deemed it preferable that the nonvote data specifically relevant to a particular vote be included with it.

The variables extend from the beginning (1969) to the end of the Burger Court (1986). The vast majority of the variables are numeric, many of which are dummies. Users may determine the type of each variable by clicking on the variable view option at the foot of the onscreen display. The structure of the database provides for a variable number of records per case.

Note especially that failure to select appropriate unit(s) of analysis and type(s) of decisions will likely generate data that are woefully inappropriate and/or grossly misleading. If you do nothing else, be sure that you understand how to use these two variables -- unit of analysis (ANALU) and type of decision (DEC_TYPE)(variables 5 and 46) -- before undertaking any analyses of any of the other variables.

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identification variables

Variables 1, 2, 3 case citations (US, LED, SCT)

All US and LED citations were copied directly from the published volumes. SCT citations were derived from the conversion table to the *United States Reports* which is located in the front of the various volumes of the *Supreme Court Reporter*.

Not every record is cited to each source. The Lawyers' Edition, for example, does not contain *Olin Mathieson Chemical Corp. v. N.L.R.B.*, 352 U.S. 1020 (1957). On the other hand, the *United States Reports* do not contain those cases in which a justice dissents from the granting of an attorney's request for admission to the Bar of the United States Supreme Court.

Variable 4 docket number (DOCKET)

Beginning with the 1970 term, the Court changed its method of numbering dockets. The last two digits of the term now precede the number assigned the case. Prior to 1970, a docket was not identified by reference to the Court's term. Hence, cases from different terms could have the same docket number.

Variable 5 unit of analysis (ANALU)

Explanation of the use of this variable requires definition of what a "record" and a "case" are. A record is the computerized listing of the variables contained in a case. Each record is distinctive; that is to say, no two records in the database are identical in all respects. The entry in at least one variable will differ from that contained in another record. A "case," on the other hand, refers to a citation or a docket number. A case may theoretically have an unlimited number of records.

The options available are specified in the values SPSS lists for this variable. Most research uses either case citation or docket number.

In using case citation as the unit of analysis only the

information contained in the first record for that citation is provided. Choosing docket number in a multiple record case will specify possible differences in the court in which the case originated (variable 10), the court whose decision the Supreme Court reviewed (variable 11), the parties to the case (variables 14 and 15), the "direction" of the Court's decision (variables 38-44), direction based on dissent (variable 45), the disposition the Court made of the case (variable 47), or an unusual disposition (variable 48). If any of these matters are of interest, docket number is the appropriate unit of analysis. To define a case as each separate docket number requires selection of ANALU=0 and ANALU=1.

Users whose interest lies in certain legal provisions (variable 33) or issues (variable 36) should go more or less directly to these variables without concerning themselves with a unit of analysis as such. But again take care to choose the appropriate type of decision (variable 46).

The final option that the ANALU variable provides is the identification of cases that contain a split vote. This phrase refers to those cases with a common citation and docket number in which one or more of the justices voted with the majority on one issue or aspect of the case and dissented on another. Note that a "4" will appear in the ANALU variable only if the docket number, legal provision, and the issue are the same in the original record in the case (ANALU=0) as they are in the record(s) in which ANALU=4.

Use of any of the ANALU options other than 0, will cause the unit of analysis to be docket number, not case citation. In other words, if you wish to analyze only cases with multiple legal provisions, what the database will provide you are such cases by docket number, not just case citation. Thus, for example, if a cited case contains two docket numbers and three legal provisions, each of the two docket numbers will appear three times in order to account for the distinctive legal provisions that each docket number addresses. Hence, if a docket number concerns more than one legal provision, it will appear once for each such legal provision. Thus, a docket number with four legal provisions will appear four times, each of which -- in pertinent part -- will differ from the other three only in the content of the legal provision (LAW) variable (variable 33) and, in addition, by the appearance of a "3" in the second through the fourth of these records. The citation and docket number will be identical in all four of these records, as the following hypothetical example shows:

US	DOCKET	LAW	ANALU
366/0666	99-8	1A	0
366/0666	99-8	5ADP	3
366/0666	99-8	RICO	3

Clearly then, to use the appearance of a 2,3,4, or 5 in the ANALU variable to count the number of case citations or docket numbers with multiple issues, multiple legal provisions, split votes, or a combination of multiple issue and legal provisions will produce a drastic overcount.

Variable 6
number of records per unit of analysis (REC)

This variable specifies the number of records per unit of analysis for each citation whose docket number appears more than once. Thus, if a given docket number contains five legal provisions (indicated by a "3" in variable 5 for the second, third, fourth, and fifth appearances of the case's docket number), the number, "4," will appear in this variable in the first record that contains a "3" in the unit of analysis (ANALU) variable.

REC basically acts as a check on coding accuracy. Users are not likely to use the REC variable except to know if any citations contain multiple docket numbers, multiple legal provisions, multiple issues, or split votes.

This variable also contains the number of docket numbers that pertain to a given citation. Thus, if a citation has three docket numbers, a "2" will appear in the record of this variable that contains the first "1" in the unit of analysis variable. The "2" in the REC variable indicates that this citation has three docket numbers (the original record, plus two additional records containing the second and third docket numbers, respectively).

Note that in the first record of every citation (which is also the first record of that docket number) this variable has no entry unless the docket number of the first case is higher than that of the second or any succeeding case. Also note that the entry in the REC variable is meaningful only in relation to the presence of a "1," "2," "3," "4," or "5" in the unit of analysis variable. Thus, if a given record has a "3" in the ANALU variable and a "1" in the REC variable, the citation (the docket number) has two legal provisions from the codes specified for the legal provisions at issue considered by the Court variable. Further note that cases containing multiple legal provisions and multiple docket numbers should have separate entries in the REC variable. For example, if a citation contains two docket numbers, each of which contains three legal provisions, the unit of analysis variable (ANALU) will be empty in the first record, as will the REC variable. The second record will have a "1" in ANALU and also a "1" in REC to indicate a cite with two docket numbers. The third and fourth records, which correspond to the second legal provision for the two separate docket numbers, will

contain a "3" in ANALU and a "2" in REC to signify that this case has three legal provisions. The fifth and sixth records will again contain a "3" in ANALU, but no entry in REC because the number of legal provisions -- minus one -- that each docket number contains has already been specified.

A technical explanation of the REC variable follows:

If a citation to a case has more than a single record either because it has more than a single docket number, is multi-issue, contains multiple legal provisions, was decided by a split vote, or has both multiple issues and legal provisions, this variable specifies the number of such additional records in the first record in which the unit of analysis variable (ANALU) indicates the reason for the multiple records. Thus, if a "2" appears in the REC variable of a case in which ANALU=1, it means that this particular case has three docket numbers: the original docket number, which as explained in the ANALU variable never contains an entry in the record in which it initially appears, and the two additional records that contain the second and third docket numbers, respectively. As a further example, consider a citation whose second record has a "1" in the REC variable. This record contains a "3" in its ANALU variable. This means that this case contains two legal provisions as defined and specified by the LAW variable. Inspection of the two records for this case will show that the entry for the LAW variable in the first of these two records differs from the entry for the LAW variable in the second of these two records.

Note that the entry in the REC variable is meaningful only in relation to the presence of the appropriate code from the ANALU variable. A "2" in the latter and a "1" in the former, for example, means that this case has two issues as defined and identified by the issue variable. Similarly, a "4" in the REC variable and a "1" in the ANALU variable means that this case has five docket numbers.

It bears repeating that the first record of every case citation will have no entry in the REC variable unless its docket number is higher than that of another docket number of that case.

Also note that a case may show some combination of the ANALU codes in its various records, rather than a "1," "2," "3," "4," or "5" exclusively. For example, if a citation has two docket numbers, each of which concerns three distinct legal provisions, the ANALU and REC variables will both be empty in the first record. The second record will contain a "1" in the REC variable and also a "1" in the ANALU variable to signify that this case has two docket numbers. The next record -- the third -- will show a "3" in the REC variable and a "3" in ANALU to indicate that this docket number concerns four separate legal provisions. The fourth and fifth records, assuming that their docket number is the same as that which appears on the third record, will show a "3" in the ANALU variable while the REC variable has no entry.

It has no entry because the number of legal provisions that this docket number addresses has already been specified. The sixth record, parallel to the third one, will show a "3" in the REC variable and a 3 in the ANALU variable to indicate that the second docket number in this case also contains four distinct legal provisions. The final two records, paralleling the fourth and fifth ones, will have a "3" in their ANALU variable while their REC variable has no entry. The visual representation of this hypothetical example would appear as follows:

US	DOCKET	ANALU	REC
366/0666	234		
366/0666	567	1	1
366/0666	234	3	3
366/0666	234	3	
366/0666	234	3	
366/0666	567	3	3
366/0666	567	3	
366/0666	567	3	

Finally, note that if a "5" appears in the ANALU variable signifying a case that has multiple legal provisions and multiple issues, the number in the REC variable will correctly identify only the number of legal provisions, minus one, that the docket number addresses. It will not necessarily indicate accurately the number of issues to which the docket number applies. All that you may conclude about multiple issues is that the docket number pertains to more than one. Greater precision does not obtain because the "5" in the ANALU variable relates to the original record for this docket number. Thus, the number specified in the REC variable of the second record, say "2," will indicate that the docket number applies to three distinct legal provisions, but that the second and third of these legal provisions may relate to a common issue which differs from that entered in the first record. Alternatively, the second and third records may not only contain legal provisions different from that entered in the first record, but they may also contain distinctive issues. Without visual inspection, you will not be able to determine whether this docket number has two or three issues. You will know, however, that this docket number does concern three legal provisions.

Most of the citations that show both a "3" and a "5" in their ANALU variable produce a situation akin to the following:

US	DOCKET	ANALU	REC	LAW	LAWS	ISSUE
396/0398	190			21-174	1	501
396/0398	190	3	1	5ADP	1	501
396/0398	190	5	1	26-4704	1	175

Here the ANALU=3 and the ANALU=5 records each treat separate legal provisions. To rectify the situation in cases containing records in which both a "3" and a "5" appear in the ANALU variable, focus instead on the multiple legal provisions (LAWS) variable (variable 34). Each record pertaining to a docket number that concerns a legal provision distinct from any other that a different record lists will show a "1" in the LAWS variable. To determine the number of distinct legal provisions that the Court considered, simply sum the number of times a "1" appears in the LAWS variable for a particular docket number that has more than a single record.

background variables

Variable 7

manner in which the Court takes jurisdiction (JUR)

The database specifies the values of this variable.

Variable 8

administrative action preceding litigation (ADMIN)

The activity in question may involve an administrative official as well as that of an agency. The general rule for an entry in this variable is whether administrative action occurred in the context of the case.

An entry should appear in this variable if there is reference to action by a "board," "commission," "department," or "agency," or to "administrative" action; or if there is application of agency "rules," "guidelines," "regulations," or remedies; or the use of agency "hearings" or "proceedings"; or the holding or issuing of a "permit," "license," or "certificate."

Action by an agency official is considered to be administrative action except when such an official acts to enforce criminal law. However, action by a parole board or administrative action within a prison (e.g., transfer of prisoners without a hearing) is included as agency action. Investigations conducted by agency officials and noncriminal prosecutions are defined as agency action.

If an agency or agency official "denies" a "request" that action be taken, such denials are considered agency action.

The admissibility and dismissal of students from public educational institutions are considered administrative action.

The delegation of licensing authority to a private body (e.g., a board of bar examiners) is considered administrative action.

Excluded from entry in this variable are:

A "challenge" to an unapplied agency rule, regulation, etc.

A request for an injunction or a declaratory judgment against agency action which, though anticipated, has not yet occurred.

A mere request for an agency to take action when there is no evidence that the agency did so.

Agency or official action to enforce criminal law.

The hiring and firing of political appointees or the procedures whereby public officials are appointed to office.

Filing fees or nominating petitions required for access to the ballot.

Attorney general preclearance actions pertaining to voting.

Actions of courts martial.

Land condemnation suits and quiet title actions commenced in a court.

Federally funded private nonprofit organizations.

When a state agency or official acts as an agent of a federal agency, it is identified as federal agency action.

Where the record is unclear as to the presence of such action, a '?' will appear.

Administrative action may be either state or federal. If administrative action was taken by a state or a subdivision thereof, the two-letter ZIP Code abbreviation of the state in question will identify it. If administrative action results from an agency created under an interstate compact, the letters, 'IC,' identify it.

If two federal agencies are mentioned (e.g., INS and BIA), the one whose action more directly bears on the dispute will appear; otherwise the agency that acted more recently. If a state and federal agency are mentioned, the federal agency will appear.

If agency action is federal, an abbreviation from the following list is used.

AAFX = Army and Air Force Exchange Service

AEC = Atomic Energy Commission

AF = Secretary or administrative unit or personnel of the U.S. Air Force

AGRI = Department or Secretary of Agriculture

APC = Alien Property Custodian

ARMY = Secretary or administrative unit or personnel of the U.S. Army

BIA = Board of Immigration Appeals

BINA = Bureau of Indian Affairs

BOP = Bureau of Prisons

BPA = Bonneville Power Administration

BRB = Benefits Review Board
 CAB = Civil Aeronautics Board
 CENS = Bureau of the Census
 CIA = Central Intelligence Agency
 CFTC = Commodity Futures Trading Commission
 COMM = Department or Secretary of Commerce
 COMP = Comptroller of Currency
 CPSC = Consumer Product Safety Commission
 CRC = Civil Rights Commission
 CSC = Civil Service Commission, U.S.
 CUCO = Customs Service or Commissioner of Customs
 DBCR = Defense Base Closure and REalignment Commission
 DEA = Drug Enforcement Agency
 DOD = Department or Secretary of Defense (identify components -- Army, Navy, Air Force -- separately, unless more than one is present, in which case use DOD)
 DOE = Department or Secretary of Energy
 DOI = Department or Secretary of the Interior
 DOJ = Department of Justice or Attorney General
 DOS = Department or Secretary of State
 DOT = Department or Secretary of Transportation
 EDUC = Department or Secretary of Education
 EECC = U.S. Employees' Compensation Commission, or Commissioner
 EEOC = Equal Employment Opportunity Commission
 EPA = Environmental Protection Agency or Administrator
 FAA = Federal Aviation Agency or Administration
 FBI = Federal Bureau of Investigation or Director
 FBP = Federal Bureau of Prisons
 FCA = Farm Credit Administration
 FCUA = Federal Credit Union Administration
 FCC = Federal Communications Commission
 FDA = Food and Drug Administration
 FDIC = Federal Deposit Insurance Corporation
 FEA = Federal Energy Administration
 FEC = Federal Election Commission
 FERC = Federal Energy Regulatory Commission
 FHA = Federal Housing Administration
 FHLB = Federal Home Loan Bank Board
 FLRA = Federal Labor Relations Authority
 FMBD = Federal Maritime Board
 FMC = Federal Maritime Commission
 FMHA = Farmers Home Administration
 FPB = Federal Parole Board
 FPC = Federal Power Commission
 FRA = Federal Railroad Administration
 FRB = Federal Reserve Board of Governors
 FRS = Federal Reserve System

FSLI = Federal Savings and Loan Insurance Corporation
 FTC = Federal Trade Commission
 FWA = Federal Works Administration, or Administrator
 GAO = General Accounting Office
 GENL = Comptroller General
 GSA = General Services Administration
 HEW = Department or Secretary of Health, Education and Welfare
 HHS = Department or Secretary of Health and Human Services
 HUD = Department or Secretary of Housing and Urban Development
 IC = administrative agency established under an inter-state compact (except for the MTC)
 ICC = Interstate Commerce Commission
 INCC = Indian Claims Commission
 INS = Immigration and Naturalization Service, or Director of, or District Director of
 IRS = Internal Revenue Service, Collector, Commissioner, or District Director of
 ISOO = Information Security Oversight Office
 LABR = Department or Secretary of Labor
 LRB = Loyalty Review Board
 LSC = Legal Services Corporation
 MSPB = Merit Systems Protection Board
 MTC = Multistate Tax Commission
 NASA = National Aeronautics and Space Administration
 NAVY = Secretary or administrative unit of the U.S. Navy
 NCUA = National Credit Union Administration
 NEA = National Endowment for the Arts
 NEC = National Enforcement Commission
 NHTS = National Highway Traffic Safety Administration
 NLRB = National Labor Relations Board, or regional office or officer
 NMB = National Mediation Board
 NRAB = National Railroad Adjustment Board
 NRC = Nuclear Regulatory Commission
 NSA = National Security Agency
 OEO = Office of Economic Opportunity
 OMB = Office of Management and Budget
 OPA = Office of Price Administration, or Price Administrator
 OPM = Office of Personnel Management
 OSHA = Occupational Safety and Health Administration
 OSHC = Occupational Safety and Health Review Commission
 OWCP = Office of Workers' Compensation Programs
 PATO = Patent Office, or Commissioner of, or Board of Appeals of
 PAY = Pay Board (established under the Economic Stabilization Act of 1970)

PBGC = Pension Benefit Guaranty Corporation
 PHS = U.S. Public Health Service
 PRC = Postal Rate Commission
 RNGB = Renegotiation Board
 RRAB = Railroad Adjustment Board
 RRRB = Railroad Retirement Board
 SACB = Subversive Activities Control Board
 SBA = Small Business Administration
 SEC = Securities and Exchange Commission
 SSA = Social Security Administration or Commissioner
 SSS = Selective Service System
 TREA = Department or Secretary of the Treasury
 TVA = Tennessee Valley Authority
 USFS = United States Forest Service
 USPC = United States Parole Commission
 USPS = Postal Service and Post Office, or Postmaster General, or Postmaster
 USSC = United States Sentencing Commission
 VTAD = Veterans' Administration
 WPB = War Production Board
 WSB = Wage Stabilization Board

Note that the foregoing entries may also be found in the parties variables (variables 14 and 15).

Variable 9
three-judge district court (J3)

This variable will contain an entry (=1) only if the case was heard by a three-judge federal district court.

Variable 10
origin of case (ORIGIN)

The focus of this variable is the court in which the case originated, not the administrative agency (see variable 8). For this reason a number of cases show a state or federal appellate court as the one in which the case originated rather than a court of first instance (trial court). This variable has no entry in cases that originated in the United States Supreme Court.

Cases that arise on a petition of habeas corpus and those removed to the federal courts from a state court are defined as originating in the federal, rather than a state, court system.

The court of origin is identified by an abbreviated form of that used in the current edition of *A Uniform System of Citation* (Cambridge: Harvard Law Review Assn.)

federal district courts: The geographical locus, if any, appears as "C" (Central), "E" (Eastern), "M" (Middle), "N" (Northern), "S" (Southern), or "W" (Western). This is followed

by "D" to denominate the tribunal as a federal district court. If the state contains only one federal district court, the "D" appears in the first column of this variable, otherwise in the second column. The two-letter Postal Service ZIP Code abbreviation of the state in question completes the identification of the district courts. E.g., NDIL, CDCA, DMA, DDC.

state courts: The state's ZIP Code abbreviation appears in the first two columns, followed by one of the following: "TR" to indicate a trial court of the state in question, "AP" to indicate an appellate court, and empty cells to indicate the state's supreme court. Two states, Oklahoma and Texas, have separate civil and criminal supreme courts. No distinction is made between them. The current edition of *State Court Organization* (Williamsburg, VA: National Center for State Courts) is the source used to identify a court as one of first instance, intermediate appellate, or of last resort.

federal courts of appeal: The number of the Circuit (1-11) or DC is followed by the letter "C." E.g., 1C, 8C, 11C, DCC.

Other federal courts are identified as follows:

CIT = Court of International Trade

CCPA = Court of Customs and Patent Appeals

CTCL = Court of Claims, Court of Federal Claims

CTMA = Court of Military Appeals, renamed as Court of Appeals for the Armed forces

CTVA = Court of Veterans Appeals

CTMR = Court of Military Review

CUST = Customs Court

FEDC = Court of Appeals for the Federal Circuit

TAX = Tax Court

TECA = Temporary Emergency Court of Appeals

This variable lacks an entry if the case only involved proceedings in the Supreme Court itself (e.g., application for admission to the Supreme Court's bar).

A petition for a writ of habeas corpus begins in the federal district court, not the state trial court.

Cases removed to a federal court originate there.

Variable 11 source of case (SOURCE)

This variable identifies the court whose decision the Supreme Court reviewed. Forum identification is the same as for the preceding variable. If the case originated in the same court whose decision the Supreme Court reviewed, the entry in the ORIGIN variable (variable 10) should be the same as here. This variable lacks an entry if the case involved no proceedings other than in the Supreme Court itself.

Variable 12
lower court disagreement (DISS)

An entry in this variable indicates that one or more of the members of the court whose decision the Supreme Court reviewed dissented from its judgment. If the Supreme Court's decision does not specify, a reference to a dissent in the court below by a member of the Supreme Court who wrote a separate opinion suffices for an entry in this variable.

If a case arose on habeas corpus, a dissent will be indicated if either the last federal court or the last state court to review the case contained one. A dissent will also be indicated if the highest court with jurisdiction to hear the case declines to do so by a divided vote. E.g., *Simpson v. Florida*, 29 L ed 2d 549 (1971).

Except for informally decided (memorandum) cases (see variable 46), the presence of such disagreement is limited to a statement to this effect somewhere in the majority opinion. I.e., "divided," "dissented," "disagreed," "split." A reference, without more, to the "majority" or "plurality" does not necessarily evidence dissent. The other judges may have concurred. Inasmuch as none of the memorandum cases contain a majority opinion, a '1' will appear in this variable if any opinion in such a case indicates that a lower court dissent did occur.

Note that the focus of this variable is a statement that a dissent occurred rather than the fact of such an occurrence. Presumably, the fact of a dissent is not always mentioned in the majority opinion. It may be irrelevant.

Variable 13
reason for granting certiorari (CERT)

The focus in this variable is on the reason the majority gives for granting cert. Many majority opinions state, "The question presented is . . ." This is not a reason for granting cert; neither are its variations: e.g., "At issue in this case is . . ."

Accordingly, this variable will have no entry 1) if the case did not arise on writ of certiorari, or 2) if it did arise on cert but is an informally decided back-of-the-book (memorandum) decision (see variable 46) or was decided by a tied vote (again see variable 46).

SPSS specifies the values of this variable.

Variables 14-15
parties (PARTY_1, PARTY_2)

These two variables identify the parties to the case. PARTY_1 refers to the party who petitioned the Supreme Court to

review the case. This party is variously known as the petitioner or the appellant. PARTY_2 is conventionally labeled the respondent, defendant, or appellee. The specific codes that appear below were created inductively, with PARTY_1 as well as PARTY_2 characterized as the Court's opinion identifies them.

In describing the parties in the cases before it, the justices employ terminology which places them in the context of the litigation in which they are involved. Accordingly, an employer who happens to be a manufacturer will be identified as the former if its role in the litigation is that of an employer and as the latter if its role is that of a business. Because the justices describe litigants in this fashion, a fairly limited vocabulary characterizes them. Note that the list of parties also includes the list of administrative agencies and officials contained in variable, administrative action preceding litigation (variable 8).

Also note that the Court's characterization of the parties applies whether the petitioner and respondent are actually single entities or whether many other persons or legal entities have associated themselves with the lawsuit. That is, the presence of the phrase, et al, following the name of a party does not preclude the Court from characterizing that party as though it were a single entity. Thus, each docket number will show a single PARTY_1 and a single PARTY_2, regardless of how many legal entities were actually involved.

In the list of parties appended below, the states and territories of the United States are identified by the 2-letter ZIP abbreviation used by the U.S. Postal Service. IC has been added to this list to identify an interstate compact.

Federal agencies are identified by the specific abbreviation used in the ADMIN variable (variable 8).

In criminal and habeas corpus cases, the name of the state which is involved in the prosecution (or the US in a federal criminal prosecution or habeas corpus against a federal official) is used rather than the office of the person who prosecutes or has custody of the accused or convicted person.

LIST OF PARTIES

? = party not identified in the Reports

governmental context
[related entries are enclosed in parentheses]

AG = attorney general of the United States, or his office

__ BD ED = specified state board or department of education
(__SCHDIST)

__ CITY = city, town, township, village, or borough government

or governmental unit (___ NONMUN, ___ COUNTY)

___ COMN = state commission, board, committee, or authority (___ DEPT)

___ COUNT = county government or county governmental unit, except school district

___ COURT = court or judicial district (___ JUDGE, ___ S CT)

___ DEPT = state department or agency (___ COMN)

___ GOEE = governmental employee or job applicant, unless employee is a GOFEE (female), GOME (minority), or GOMFEE (minority female)

___ GOFEE = female governmental employee or job applicant

___ GOME = minority governmental employee or job applicant

___ GOMFE = minority female governmental employee or job applicant

GOVT COR = federal government corporation not listed among agencies in variable 8

___ GREE = retired or former governmental employee (VETERAN)

HSE REPS = U.S. House of Representatives (LEGIS, SENATE, SENATOR)

IC = interstate compact

___ JUDGE = judge (___ COURT)

___ LEGIS = state legislature, house, or committee (HSE REPS, SENATE, SENATOR)

___ NONMU = local governmental unit other than those of a county, city, town, township, village, or borough (___ CITY, ___ COUNTY)

___ OF = governmental official, or an official of an agency established under an interstate compact. The first two columns identify the pertinent state, the United States, or an interstate compact.

___ S CT = state or U.S. supreme court

___SCHDIS = local school district or board of education (___ BD
ED)

SENATE = U.S. Senate (HSE REPS)

SENATOR = U.S. senator

SOVEREIG = foreign nation or instrumentality

___ TAXP = state or local governmental taxpayer, or executor of
the estate of

___ U = state college or university

US = United States

nongovernmental context
[related entries are enclosed in parentheses]

AC = person accused, indicted, or suspected of crime (ARRES
TEE, CC, D, PRISONER, PROBATION, WITNESS)

AD = advertising business or agency

AGENT = agent, fiduciary, trustee, or executor (MGMT)

AIR MFR = airplane manufacturer, or manufacturer of parts of
airplanes

AIRLINE = airline (BOAT, BUS, RR, SHIP, TRUCK)

ALCOHOL = distributor, importer, or exporter of alcoholic
beverages (BAR, BREWERY, DISTRIBUT, WHOLESALE)

ALIEN = alien, person subject to a denaturalization proceed
ing, or one whose citizenship is revoked

AMA = American Medical Association (HEAL, HOSPITAL, PHYSICIAN)

AMTRAK = National Railroad Passenger Corp.

ARCADE = amusement establishment, or recreational facility

ARRESTEE = arrested person, or pretrial detainee (AC, CC, D,
PRISONER, PROBATION)

ATTY = attorney, or person acting as such; includes bar
applicant or law student, or law firm

AUTHOR = author, copyright holder (INVENTOR)

BANK = bank, savings and loan, credit union, investment company (CREDITOR)

BANKRUPT = bankrupt person or business, including trustee in bankruptcy, or business in reorganization (DEBTOR)

BAR = establishment serving liquor by the glass, or package liquor store (ALCOHOL, RESTRANT)

BOAT = water transportation, stevedore (AIRLINE, BUS, RR, SHIPPER, TRUCK)

BOOK = bookstore, newsstand, printer, bindery, purveyor or distributor of books or magazines (FILM, NETWORK, NEWS, PUBLISHER)

BREWERY = brewery, distillery (ALCOHOL, BAR)

BROKER = broker, stock exchange, investment or securities firm (STOCK)

BUILDER = construction industry (KOR)

BUS = bus or motorized passenger transportation vehicle

BUSINESS = business, corporation (AD, AIRLINE, AIR MFR, ALCOHOL, ARCADE, BANK, BAR, BOAT, BOOK, BREWERY, BROKER, BUILDER, BUS, CABLE TV, CAR DEAL, CHEM CO, COAL CO, DISTRIBUT, DRUG MFR, ELEC CO, FARMER, FOOD, FRACHISOR, FRANCHISE, HEAL, HOSPITAL, INSURE, KOR, MAGAZINE, MEDICAL, MFR, MGMT, MINE, MOTOR CO, NETWORK, NEWS, NONPROFIT, NUCLEAR, OIL CO, PARKING, PHONE, PI, PIPELINE, PRO, PU, PUBLISHER, RADIO, REALTOR, RESTRANT, RR, SHIPPER, STORE, THEATER, TIMBER CO, TRUCK, TV, WHOLESALE)

BUYER = buyer, purchaser (CONSUMER)

CABLE TV = cable TV (TV, NETWORK)

CAR DEAL = car dealer

CC = person convicted of crime (AC, ARRESTEE, D, POOR D, PRISONER, PROBATION)

CHATTEL = tangible property, other than real estate, including

contraband (FILM, 0)

CHEM CO = chemical company

CHILD = child, children, including adopted or illegitimate
(FATHER, JUV, MOTHER, PARENT)

CHURCH = religious organization, institution, or person (ELEE)

CLUB = private club or facility

COAL CO = coal company or coal mine operator

COMPUTER = computer business or manufacturer, hardware or software

CONSUMER = consumer, consumer organization (BUYER)

CREDITOR = creditor, including institution appearing as such;
e.g., a finance company (BANK)

CRIM INS = person allegedly criminally insane or mentally
incompetent to stand trial (ICMP)

D = defendant (AC, CC, POOR D, PRISONER, PROBATION)

DEBTOR = debtor, excluding bankrupt person or business
(BANKRUPT)

DEVELOPE = real estate developer (O, REALTOR, SHOP CTR)

DISABLED = disabled person or disability benefit claimant
(HANDICAPD, MED CLAIM, PATIENT)

DISTRIBU = distributor (BOOK, WHOLESALE)

DRAFTEE = person subject to selective service, including
conscientious objector (MILITARY)

DRUG MFR = drug manufacturer

DRUGGIST = druggist, pharmacist, pharmacy

EE = employee, or job applicant, including beneficiaries of
(FEE, MEE, MFEE, __ GOEE, __ GOFEE, __ GOMEE, __ GOMFEE
__ GREE)

EE TRUST = employer-employee trust agreement, employee health
and welfare fund, or multi-employer pension plan

ELEC CO = electric equipment manufacturer

ELEC PU = electric or hydroelectric power utility, power co-operative, or gas and electric company (NUCLEAR, OIL CO, PU)

ELEE = eleemosynary institution or person (CHURCH, PI, NON PROFIT)

ENV = environmental organization

ER = employer. If employer's relations with employees are governed by the nature of the employer's business (e.g., RR, BOAT), rather than labor law generally, the more specific designation is used in place of ER.

FARMER = farmer, farm worker, or farm organization (FOOD, TIMBER CO)

FATHER = father (CHILD, MOTHER, PARENT)

FEE = female employee or job applicant (MFEE, __ GOFEE, __ GOMFEE)

FEMALE = female (FEE, MALE, MOTHER, WIFE)

FILM = movie, play, pictorial representation, theatrical production, actor, or exhibitor or distributor of (BOOK, CABLE TV, NEWS, NETWORK, RADIO, THEATER, TV)

FISH = fisherman or fishing company

FOOD = food, meat packing, or processing company, stockyard (FARMER)

FOREIGN = foreign (non-American) nongovernmental entity (SOVEREIGN)

FRACHISO = franchiser

FRANCHIS = franchisee

GAY = homosexual person or organization (PROT, RAMIPROT)

GUARANTO = person who guarantees another's obligations

HANDICAP = handicapped individual, or organization of devoted to (DISABLED, MED CLAIM, PATIENT)

HEAL = health organization or person, nursing home, medical clinic or laboratory, chiropractor (HOSPITAL, MEDICAL, PHYSICIAN)

HEIR = heir, or beneficiary, or person so claiming to be (0)

HOSPITAL = hospital, medical center (HEAL)

HUSBAND = husband, or ex-husband (SPOUSE, WIFE)

ICMP = involuntarily committed mental patient (CRIM INSA, RETARDED)

INDIAN = Indian, including Indian tribe or nation

INSURE = insurance company, or surety

INVENTOR = inventor, patent assigner, trademark owner or holder (AUTHOR)

INVESTOR = investor (STOCK)

IP = injured person or legal entity, nonphysically and non-employment related (PIP). If unclear whether the injury is physical or not, the broader category, IP, is used rather than PIP.

JUV = juvenile (CHILD)

KOR = government contractor (BUILDER)

LICENSEE = holder of a license or permit, or applicant therefor (except to practice law. Cf. ATTY)

MAGAZINE = magazine (NEWS)

MALE = male

MED CLAI = medical or Medicaid claimant (DISABLED, HANDICAPD, PATIENT)

MEDICAL = medical supply or manufacturing co. (DRUG MFR, HEAL)

MEE = racial or ethnic minority employee or job applicant (___GOME, __GOMFEE, MFEE)

MFEE = minority female employee or job applicant (___GOME, __GOMFEE, MEE)

MFR = manufacturer (BUILDER, CHEM CO, COAL CO, DRUG MFR, ELEC CO, MEDICAL, MINE, MOTOR CO, OIL CO)

MGMT = management, executive officer, or director, of business entity (AGENT)

MILITARY = military personnel, or dependent of, including reservist (DRAFTEE, VETERAN)

MINE = mining company or miner, excluding coal, oil, or pipe line company (COAL CO, OIL CO, PIPELINE)

MOTHER = mother (CHILD, FATHER, PARENT)

MOTOR CO = auto manufacturer

NEWS = newspaper, newsletter, journal of opinion, news service (BOOK, FILM, MAGAZINE, NETWORK, PUBLISHER, REPORTER)

NETWORK = radio and television network, except CABLE TV (RADIO, TV)

NONPROFI = nonprofit organization or business (CHURCH, ELEE, ENV, PI, POL, PRO)

NONRES = nonresident (RESIDENT)

NUCLEAR = nuclear power plant or facility

O = owner, landlord, or claimant to ownership, fee interest, or possession of land as well as chattels (CHATTEL, DEVELOPER, REALTOR, SHOP CTR, TENANT)

OFFEREE = shareholders to whom a tender offer is made

OFFERER = tender offer

OIL CO = oil company, or natural gas producer (ELEC PU, PIPELINE, PU)

OLD = elderly person, or organization dedicated to the elderly

OUT OF S = out of state noncriminal defendant (NONRES)

PAC = political action committee

PARENT = parent or parents (CHILD, FATHER, MOTHER)

PARKING = parking lot or service

PATIENT = patient of a health professional

PHONE = telephone, telecommunications, or telegraph company

PHYSICIA = physician, MD or DO, dentist, or medical society
(HEAL)

PI = public interest organization (ELEE, ENV, NONPROFIT)

PIP = physically injured person, including wrongful death,
who is not an employee (IP)

PIPELINE = pipe line company (OIL CO)

PKG = package, luggage, container

POL = political candidate, activist, committee, party, party
member, organization, or elected official (HSE REPS,
SENATE, SENATOR, VOTER)

POOR = indigent, needy, welfare recipient (MED CLAIM, POOR D,
UNEMPLOYD)

POOR D = indigent defendant

PP = private person

PRISONER = prisoner, inmate of penal institution (CC)

PRO = professional organization, business, or person (ATTY,
DRUGGIST, HEAL, PHYSICIAN)

PROBATIO = probationer, or parolee

PROT = protester, demonstrator, picketer or pamphleteer (non-
employment related), or non-indigent loiterer (GAY,
RAMIPROT)

PU = public utility (ELEC PU, NUCLEAR, OIL CO)

PUBLISHE = publisher, publishing company (BOOK)

RADIO = radio station (NETWORK)

RAMI = racial or ethnic minority

RAMIPROT = person or organization protesting racial or ethnic

segregation or discrimination (GAY, PROT)

RAMISTU = racial or ethnic minority student or applicant for admission to an educational institution (STUDENT)

REALTOR = realtor (DEVELOPER, 0)

REPORTER = journalist, columnist, member of the news media

RESIDENT = resident (NONRES)

RESTRANT = restaurant, food vendor (BAR)

RETARDED = retarded person, or mental incompetent (ICMP, CRIM INSA)

RETIREE = retired or former employee (__ GREE, VETERAN)

RR = railroad (AIR, BOAT, BUS, SHIPPER, TRUCK)

SCHOOL = private school, college, or university (CHURCH, STUDENT)

SELLER = seller or vendor

SHIPPER = shipper, including importer and exporter (AIR, BOAT, BUS, RR, TRUCK)

SHOP CTR = shopping center (0, STORE)

SPOUSE = spouse, or former spouse (HUSBAND, WIFE)

STOCK = stockholder, shareholder, or bondholder (INVESTOR, OFFEREE, OFFERER)

STORE = retail business or outlet (CAR DEAL, DISTRIB, SHOP CTR, WHOLESALE)

STUDENT = student, or applicant for admission to an educational institution (RAMISTU)

TAXP = taxpayer or executor of taxpayer's estate, federal only (__ TAXP)

TENANT = tenant or lessee (0)

THEATER = theater, studio

TIMBER C = forest products, lumber, or logging company (FARM-

ER)

TOURIST = person traveling or wishing to travel abroad, or
overseas travel agent

TRUCK = trucking company, or motor carrier (AIR, BOAT, BUS,
RR, SHIPPER)

TV = television station (CABLE TV, NETWORK)

UMEM = union member (EE, UNION)

UNEMPLOY = unemployed person or unemployment compensation
applicant or claimant

UNION = union, labor organization, or official of (EE, EE
TRUST, UMEM)

VETERAN = veteran (MILITARY)

VOTER = voter, prospective voter, elector, or a nonelective
official seeking reapportionment or redistricting of
legislative districts (POL)

WHOLESALE = wholesale trade (ALCOHOL, DISTRIB, STORE)

WIFE = wife, or ex-wife (HUSBAND, SPOUSE)

WITNESS = witness, or person under subpoena (AC, ARRESTEE)

Variable 16
**disposition of case by court whose decision
the Supreme Court reviewed (LODIS)**

This variable specifies the treatment the court whose decision the Supreme Court reviewed accorded the decision of the court it reviewed; e.g., whether the lower court -- typically a federal court of appeals or a state supreme court -- affirmed, reversed, remanded, etc. the decision of the court it (the federal court of appeals or the state supreme court) reviewed.

If the case is not a memorandum decision (see variable 46, type of decision), LODIS will not contain an entry if the decision on the Supreme Court is reviewing is that of a trial court or if the case arose under the Supreme Court's original jurisdiction (see the JUR variable, variable 7). Memorandum cases will usually not contain an entry in this variable because the Court does not provide this information.

SPSS lists the values of this variable.

Variable 17
direction of the lower court's decision (LCTDIR)

This variable specifies whether the decision of the court whose decision the Supreme Court reviewed was itself liberal or conservative as these terms are defined in the direction of decision variables, variables 38-44.

chronological variables

Variable 18
date of oral argument (ORAL)

The year, month, and day the case was orally argued appear in this variable. Only formally decided cases and those decided by an equally divided vote are orally argued. For other types of decisions (see variable 46, type of decision) ORAL is empty.

On a few occasions, oral argument extended over two days. In these cases, only the first date is specified.

Variable 19
reargument date (REORAL)

On those infrequent occasions when the Court orders that a case be reargued, the date of such argument is specified here following the same year, month, day sequence used in the preceding variable.

Variable 20
decision date (DEC)

This variable contains the year, month, and day that the Court announced its decision in the case. Unlike the two preceding variables, every case must contain a date of decision.

Variable 21
term of Court (TERM)

This variable identifies the various terms of the Burger Court.

Variable 22
natural court (NATCT)

A natural court is a period during which no personnel change occurs. Scholars have subdivided them into strong and weak natural courts, but no convention exists as to the dates on which

they begin and end. Options include 1) date of confirmation, 2) date of seating, 3) cases decided after seating, and 4) cases **argued** and decided after seating. See Edward V. Heck, "Justice Brennan and the Heyday of Warren Court Liberalism," 20 *Santa Clara Law Review* 841 (1980) 842-843 and "Changing Voting Patterns in the Burger Court: The Impact of Personnel Change," 17 *San Diego Law Review* 1021 (1980) 1038; Harold J. Spaeth and Michael F. Altfeld, "Measuring Power on the Supreme Court: An Alternative to the Power Index," 26 *Jurimetrics Journal* 48 (1985) 55. A strong court is delineated by the addition of a new justice or the departure of an incumbent. A weak court, by comparison, is any group of nine justices even if lengthy vacancies occurred.

The database divides the Burger Court into strong natural courts, each of which begins when the Reports first specify that the new justice is present but not necessarily participating in the reported case. Similarly, a natural court ends on the date when the Reports state that an incumbent justice has died, retired, or resigned.

Variables 23, 24, 25

date of opinion assignment (AUTDATE1,AUTDATE2,AUTDATE3)

These variables show the dates, in chronological order, on which the opinion assigner(s) made the assignment. These dates are drawn from the Burger's assignment books. In a few cases, the books list no assignee.

Variables 26-32

dates votes occurred (VOTEDAT1-VOTEDAT2, VOTEDAT4-VOTEDAT8)

These variables specify the date on which the justices cast their votes in the case. Note that the date of the final report vote is DEC, variable 20.

Dates appear in these variables corresponding to the associated vote (VOTETYP). If no associated VOTETYP exists, this variable lacks an entry.

substantive variables

Variable 33

legal provisions considered by the Court (LAW)

This variable identifies the constitutional provision(s), statute(s), or court rule(s) that the Court considered in the case.

The basic criterion to determine the legal provision(s) that a case concerns is a reference to it in at least one of the num-

bered holdings in the summary of the *United States Reports*. This summary, which the *Lawyers' Edition* of the U.S. Reports labels "Syllabus By Reporter Of Decisions," appears in the official Reports immediately after the date of decision and before the main opinion in the case. Where this summary lacks numbered holdings, it is treated as though it has but one number.

I use this summary to determine the legal provisions at issue because it is a reasonably objective and reliable indicator. The scourge of analysts in this regard has been their inability to agree on just what legal provisions the Court addressed in a given case. Although one may argue that my criterion is excessively formalistic; that it is too gross; or conversely, too refined; no other feasible criterion matches it for objectivity and reliability.

I have supplemented this criterion with a set of subordinate decision rules. If the summary has no numbered headings, treat it as though it has but one number. If more than one numbered heading pertains to a single constitutional provision, statute, or court rule, treat such legal provision as though it appeared in but one numbered heading. If separate numerical headings pertain to different sections of a statute under a given title in the *United States Code* which would not be governed by conventional use of "et seq.," treat them as separate legal provisions.

(Note that this occurs very rarely.) If a numbered heading refers to more than a single constitutional provision, statute, and/or court rule, treat them as separate legal provisions. (This not uncommonly occurs.)

Observe that where a state or local government allegedly abridges a provision of the Bill of Rights that has been made binding on the states because it has been "incorporated" into the due process clause of the Fourteenth Amendment, identification is to the specific guarantee rather than to the Fourteenth Amendment.

The legal basis for decision need not be formally stated. For example, a reference in the summary to the appointment of counsel under the Constitution or to the self-incrimination clause warrants entry of the appropriate code. (E.g., *United States v. Knox*, 396 U.S. 77; *Lassiter v. Department of Social Services*, 452 U.S. 18).

Also note that occasionally an unnumbered holding may pertain to more than one legal basis for decision. In such cases, the additional basis or bases are specified as though they are numbered holdings, or as though they are a holding without numbers.

By no means does every record have an entry in the LAW variable. Only constitutional provisions, federal statutes, and court rules are entered here. This variable will be empty in cases that concern the Supreme Court's supervisory authority over the lower federal courts; those where the Supreme Court's deci-

sion does not rest on a constitutional provision, federal statute, or court rule; provisions of the common law; decrees; and nonstatutory cases arising under the Court's original jurisdiction.

The order in which the LAW entries appear in the records of a specific docket number bears no necessary relationship to their importance to the resolution of the case. Such a judgment entails too much subjectivity. Instead, the order of the LAW entries generally follows the sequence in which they appear in the summary. As a general rule, jurisdictional considerations precede a discussion of the substantive legal provisions that the case concerns. Indeed, the legal heart of a case may be the last of several legal provisions that the Court considered, or otherwise interspersed among a number that are only peripheral to the Court's decision.

Beyond the foregoing, observe that an entry should appear in this variable only when the summary indicates that the majority opinion **discusses** the legal provision at issue. The mere fact that the Court **exercises** a certain power (e.g., its original jurisdiction, as in *Arkansas v. Tennessee*, 397 U.S. 91), or makes reference in its majority opinion -- rather than in the summary -- that a certain constitutional provision, statute, or frequently used common law rule applies (e.g., the "equal footing" principle which pertains to the admission of new states under Article IV, section 3, clause 2 of the Constitution, as *Utah v. United States*, 403 U.S. 9, illustrates) provides no warrant for any entry.

There are three exceptions to this "discussion" requirement, the first of which dismisses the writ of certiorari as "improvidently granted" -- either in so many words (e.g., *Johnson v. United States*, 401 U.S. 846) or dismisses it on this basis implicitly. In such cases, the code, WIG, should appear. More often than not, these cases have no summary. Note that the phrase is a term of art: 1) it overrides any substantive provision that the summary may mention (e.g., *Conway v. California Adult Authority*, 396 U.S. 107); 2) it does not apply where the Supreme Court takes jurisdiction on appeal (see variable 7).

In the second exception the Court, without discussion, remands a case to a lower court for consideration in light of an earlier decision. The summary of the earlier case is then consulted and the instant case coded with the entry that appeared there. If a discussion in the summary precedes the remand, this variable should be governed by that discussion as well as the basis for decision in the case that the lower court is instructed to consider. Usually these bases will be identical (e.g., *Maxwell v. Bishop*, 398 U.S. 262).

The third exception to the "discussion" criterion involves the legality of administrative agency action without specific reference to the statute under which the agency acted. Inasmuch

as administrative agencies may only act pursuant to statute, the majority opinion was consulted to determine the statute in question. The same situation may characterize the statute under which a court exercises jurisdiction.

An exclusively numerical entry identifies a provision of the original Constitution; a number followed by the letter "A" identifies an amendment to the Constitution; an exclusively alphabetic entry indicates either a commonly litigated statute or a court rule; while a one- or two-digit number followed by a hyphen and further followed by 1-4 additional digits indicates an infrequently litigated statute. The initial set of numbers identifies the title of the *United States Code* in which the statute appears, while the second set of numbers identifies the section of the title where the statute begins. Note that occasionally the abbreviation, "Appx," precedes the section number. This abbreviation is disregarded and only the section number is entered unless no section number appears, in which case the statute appears as, for example, 18-APPX.

Occasionally, a statute is cited only to the session laws (*Statutes at Large*). In these situations, the volume precedes and the page succeeds the letter, "S." E.g., '1S329' in *County of Oneida v. Oneida Indian Nation*, 470 U.S. 226). A treaty is identified by the word, "TREATY," and a statute of a territory of the U.S., which statute is not contained in either the *U.S. Code* or the *Statutes at Large*, by the word, "TERRITORY."

Because of the relative frequency with which certain non-positive law rules and doctrines form bases for the Court's holdings, these are identified in this variable along with constitutional provisions, statutes, court rules, and treaties.

As indicated, this variable should usually be empty if the numbered holding(s) indicates that the Court's decision rests on its supervisory authority over the federal judiciary, the common law, or diversity jurisdiction. (See variable 35, authority for decision.)

The format used to identify provisions of the original Constitution is as follows:

1st column = Article of the Constitution
2d column = section number of the Article
3d column = 2d digit of the section number if the section's number has two digits, otherwise the
3d column specifies the paragraph of the section, if any
4th column = paragraph of the section, if any

The list of the provisions at issue follows:

11 = delegation of powers
121 = composition of the House of Representatives

123 = apportionment of Representatives
 141 = elections clause
 151 = congressional qualifications
 161 = speech or debate clause
 171 = origination clause
 172 = separation of powers
 181 = spending, general welfare, or uniformity clause
 183 = interstate commerce clause
 184 = bankruptcy clause
 187 = postal power
 188 = patent and copyright clause
 1811 = war power
 1814 = governance of the armed forces
 1815 = call-up of militia
 1816 = organizing the militia
 1817 = governance of the District of Columbia and lands
 purchased from the states
 1818 = necessary and proper clause
 192 = suspension of the writ of habeas corpus
 193 = bill of attainder or ex post facto law
 194 = direct tax
 196 = preference to ports
 197 = appropriations clause
 110 = state bill of attainder or ex post facto law
 1101 = contract clause
 1102 = export-import clause
 1103 = compact clause
 21 = executive power
 218 = oath provision
 22 = commander-in-chief
 221 = presidential pardoning power
 222 = appointments clause
 311 = judicial power
 312 = good behavior and compensation clause of federal
 judges
 32 = extent of judicial power
 321 = case or controversy requirement (includes non-
 statutory "standing to sue" even though no refer-
 ence to the case or controversy requirement
 appears)
 322 = original jurisdiction (only if the propriety of its
 exercise is discussed. The mere fact that a case
 arises hereunder [see variable 9] does not warrant
 entry)
 323 = vicinage requirement
 33 = treason clause
 41 = full faith and credit clause
 421 = privileges and immunities clause
 422 = extradition clause

432 = property clause
44 = guarantee clause
62 = supremacy clause
63 = oath provision

Constitutional amendments are identified by the number of the amendment followed by the letter "A." Where a given amendment provides more than a single guarantee, the 4th column (and the 3d, if the amendment contains a single digit) will be used to provide specific identification according to the following schedule:

1A = speech, press, and assembly
1ASN = association
1AEX = free exercise of religion
1AES = establishment of religion
1APT = petition clause
4A = Fourth Amendment
5ADJ = double jeopardy
5ADP = due process
5AGJ = grand jury
5AMI = Miranda warnings
5ASI = self-incrimination
5ATK = takings clause
5A=P = equal protection
6ACF = right to confront and cross-examine, compulsory process
6ACO = right to counsel
6AJU = right to trial by jury
6ASP = speedy trial
6A = other Sixth Amendment provisions
7A = Seventh Amendment
8AEB = prohibition of excessive bail
8AEF = prohibition of excessive fines
8A = cruel and unusual punishment
9A = Ninth Amendment
10A = Tenth Amendment
11A = Eleventh Amendment
12A = Twelfth Amendment
13A = Thirteenth Amendment (both sections 1 and 2)
14A1 = privileges and immunities clause
14A2 = reduction in representation clause
14AC = citizenship clause
14AD = due process
14A= = equal protection
14A5 = enforcement clause
15A = Fifteenth Amendment
15A2 = enforcement clause
16A = Sixteenth Amendment

17A = Seventeenth Amendment
21A = Twenty-First Amendment
24A = Twenty-Fourth Amendment

Note that where a state or local government allegedly abridges a provision of the Bill of Rights that has been made binding on the states because it has been incorporated into the due process clause of the Fourteenth Amendment, identification is to the specific guarantee rather than to 14AD.

Frequently litigated statutes are identified by an exclusively alphabetic abbreviation except for the Civil Rights Act of 1964 which contains the number of the Title at issue in the fourth column of this variable; e.g., CRA7; and the Reconstruction Civil Rights Acts which contain their section number; i.e., 1981, 1982, 1983, 1985, 1986.

In general, amendments to the following statutes are also identified by the statutory abbreviations specified below.

ADA = Americans with Disabilities Act, as amended; also see HAND
ADEA = Age Discrimination in Employment
AFDC = Aid to Families with Dependent Children provisions of the Social Security Act, plus amendments
AIR = Clean Air, plus amendments
APA = Administrative Procedure, or Administrative Orders Review
ATOM = Atomic Energy
BANK = Bankruptcy Code, Bankruptcy Act or Rules, or Bankruptcy Reform Act of 1978
CAID = Medicaid provisions of the Social Security Act
CARE = Medicare provisions of the Social Security Act
CLAY = Clayton
CRA_____ = Reconstruction Civil Rights Acts (42 USC 1971, 1978, 1981, 1982, 1983, 1985, 1986)
CRA_ = Civil Rights Act of 1964, plus title number, as amended, except for the public accommodations provision which appears as CRAACOM
CRA1957 = Civil Rights Act of 1957
CRA1991 = Civil Rights Act of 1991
DC = statutory provisions of the District of Columbia
EAJA = Equal Access to Justice
EDAM = Education Amendments of 1972
ERIS = Employee Retirement Income Security, as amended
ESEA = Elementary and Secondary Education
FALSE = Federal False Claims
FCA = Communication Act of 1934, as amended
FECA = Federal Employees' Compensation
FEE = Civil Rights Attorney's Fees Awards
FELA = Federal Employers' Liability, as amended

FELC = Federal Election Campaign
 FFDC = Federal Food, Drug, and Cosmetic, and related statutes
 FIFR = Federal Insecticide, Fungicide, and Rodenticide
 FLSA = Fair Labor Standards
 FOIA = Freedom of Information, Sunshine, or Privacy Act
 FPA = Federal Power
 FTC = Federal Trade Commission
 FWPC = Federal Water Pollution Control (Clean Water), plus amendments
 GUN = Omnibus Crime Control and Safe Streets, National Firearms, Organized Crime Control, Comprehensive Crime Control, or Gun Control Acts, as amended, except for RICO (q.v.) portion
 HAND = Education of the Handicapped, or Education for All Handicapped Children Acts; also see ADA
 HC = 28 USC 2241-2255 (habeas corpus), as amended
 HOUS = Fair Housing
 ICA = Interstate Commerce, as amended
 INA = Immigration and Naturalization, Immigration, or Nationality Acts, as amended
 IRC = Internal Revenue Code
 ISA = Internal Security
 JENK = Jencks
 JONE = Jones
 LHWC = Longshoremen and Harbor Workers' Compensation
 LMRA = Labor-Management Relations
 LMRD = Labor-Management Reporting and Disclosure
 MCA = Motor Carrier
 MILL = Miller
 NEPA = National Environmental Policy
 NGPA = Natural Gas, or Natural Gas Policy Acts
 NLRA = National Labor Relations, as amended
 NOLA = Norris-LaGuardia
 OSHA = Occupational Safety and Health
 PURP = Public Utility Regulatory Policy
 REHA = Rehabilitation
 RICO = Racketeer Influenced and Corrupt Organizations
 RLA = Railway Labor
 RP = Robinson-Patman
 SEA = Securities Act of 1933, the Securities and Exchange Act of 1934, or the Williams Act
 SEL = Selective Service, Military Selective Service, or Universal Military Service and Training Acts
 SHER = Sherman
 SLA = Submerged Lands
 SMIT = Smith, Subversive Activities Control, Communist Control, or other similar federal legislation except the Internal Security Act (qv.)

SSA = Social Security, including Social Security Disability Benefits Reform Act, but excluding Medicare, Medicaid, Supplemental Security Income, and Aid to Families with Dependent Children
SSI = Supplemental Security Income
TIL = Truth in Lending
TORT = Federal Tort Claims
TUCK = Tucker
TWE = Trading with the Enemy Act, as amended
UCMJ = Universal Code of Military Justice, or Articles of War
VRA = Voting Rights Act of 1965, plus amendments

Decisions involving court rules are identified alphabetically according to the following schedule:

CIVP = Federal Rules of Civil Procedure, including Appellate Procedure
CRMP = Federal Rules of Criminal Procedure
FRE = Federal Rules of Evidence
SCTR = Supreme Court Rules

Bases other than the Constitution or federal statutes are identified as follows:

ABST = Abstention Doctrine
BACK = retroactive application of a constitutional right
EXCL_ = exclusionary rule (admissibility of evidence allegedly in violation of the Fourth Amendment [4], the right to counsel [6], or the Miranda warnings [5])
HARM = harmless error
RJ = res judicata
STOP = estoppel
WIG = writ improvidently granted (either in so many words, or with an indication that the reason for originally granting the writ was mistakenly believed to be present; e.g., 366 U.S. 417)

International treaties and conventions, which rarely serve as the basis for the Court's decision, are identified as TREATY, an interstate compact as IC, an executive order as EO, and a statute of a territory of the U.S., which is not in the *U.S. Code* or the *Statutes at Large*, as TERRITY.

Excluded as a numbered holding is one which states that a constitutional provision, amendment, or statute was not applied or considered in reaching the decision, or is "speculative" or "premature."

If a numbered holding pertains to the exercise of judicial

power without reference to a statutory provision or to Article III, no separate record is created to identify this feature of the case. Instead, a '3' will appear in the authority for decision variable to indicate the judicial power aspect of the legal basis for the Court's decision.

A case which challenges the constitutionality of a federal statute, court or common law rule will usually contain at least two legal bases for decision: the constitutional provision as well as the challenged statute or rule.

Where a heading concerns the review of agency action under a statute, but the statute is not identified, it is ascertained from the opinion. So also where the decision turns on the statutory jurisdiction of a federal court, and the holding does not specify it (e.g., *United States v. King*, 395 U.S. 1).

Variable 34 **multiple legal provisions (LAWS)**

This variable indicates whether any given legal provision is the only one considered by the Court, or whether other(s) are also involved. A '1' in this variable indicates the presence of multiple legal provisions.

The '1' appears in this variable in each record of such cases where there is a legal provision different from that of another record in the case. The only exception is a case where a single legal provision applies to more than one issue (see variable 5).

Variable 35 **authority for decision (AUTH_DEC)**

This variable specifies the bases on which the Supreme Court rested its decision with regard to each legal provision that the Court considered in the case (see variable 33). SPSS lists the values. One of them may be combined with another; e.g., the interpretation of the substantive provisions of a federal statute and the Supreme Court's exercise of its supervisory power over the lower federal courts. In a case involving congressional acquiescence to longstanding administrative construction of a statute, these variables should appear as '5' and '4.' If two bases are identified, and if one is more heavily emphasized, it should appear before the other.

AUTH_DEC will have an entry in every record that is not a memorandum case (see variable 46), type of decision).

Considerable congruence should obtain between the entry in the AUTHDEC variables and the code that appears in the LAW variable (variable 33). Thus, if a constitutional provision appears in the LAW variable, a '1' or a '2' will typically appear. Similarly, if LAW displays a statute, a '4' should appear. A common

exception is where the Court determines the constitutionality of a federal statute, or where judge-made rules are applied to determine liability under various federal statutes, including civil rights acts (e.g., *Pulliam v. Allen*, 466 U.S. 522), or the propriety of the federal courts' use of state statutes of limitations to adjudicate federal statutory claims (e.g., *Burnett v. Grattan*, 468 U.S. 42).

Variable 36 issue (ISSUE)

This variable identifies the context in which the legal basis for decision (variable 33) appears. The First Amendment, due process, and equal protection, for example, separately apply to a substantial number of distinguishable issues as the codebook entries indicate. Thus, the equal protection clause may pertain to sex discrimination in one case, school desegregation in another, and affirmative action in yet a third -- to say nothing of the employability of aliens, denial of welfare benefits, legislative districting and apportionment, the access of political parties and candidates to the ballot, durational residency requirements, the status of juveniles, of Indians, and the imposition of costs and filing fees on indigents in the criminal justice system.

Although criteria for the identification of issues are hard to articulate, the focus here is on the subject matter of the controversy rather than its legal basis. I have attempted to identify issues on the basis of the Court's own statements as to what the case is about. The objective is to categorize the case from a public policy standpoint, a perspective that the legal basis for decision (variable 33) commonly disregards.

Unlike the LAW variable where the number of legal provisions at issue has no preordained upper bound, an issue should not apply to more than a single legal provision. A second issue should apply only when a preference for one rather than the other cannot readily be made. Of the many thousand records in the database, only about three percent have a legal basis for decision that applies to a second issue.

I have identified more than 260 numerical issues which have been organized into thirteen major groupings: criminal procedure, civil rights, First Amendment, due process, privacy, attorneys, unions, economic activity, judicial power, federalism, interstate relations, federal taxation, and miscellaneous. These comprise the codes for a separate variable, issue area, that is described immediately following this one.

The scope of these categories is as follows: criminal procedure encompasses the rights of persons accused of crime, except for the due process rights of prisoners (issue 504). Civil rights includes non-First Amendment freedom cases which

pertain to classifications based on race (including American Indians), age, indigency, voting, residency, military or handicapped status, gender, and alienage. Purists may wish to treat the military issues (361-363) and Indian cases (293-294) as economic activity, while others may wish to include the privacy category as a subset of civil rights. First Amendment encompasses the scope of this constitutional provision, but do note that not every case in the First Amendment group directly involves the interpretation and application of a provision of the First Amendment. Some, for example, may only construe a precedent, or the reviewability of a claim based on the First Amendment, of the scope of an administrative rule or regulation that impacts the exercise of First Amendment freedoms. In other words, not every record that displays a First Amendment issue will correspondingly display a provision of the First Amendment in its legal provision variable (variable 33).

Due process is limited to non-criminal guarantees and, like First Amendment issues, need not show '5ADP' or '14AD' in its LAW variable. Some of you may wish to include state court assertion of jurisdiction over nonresident defendants and the takings clause (issues 506-507) as part of judicial power and economic activity, respectively, rather than due process. As mentioned, the three issues comprising privacy (531, 533, 537) may be treated as a subset of civil rights. Because of their peculiar role in the judicial process, a separate attorney category has been created (issues 542, 544, 546, 548). You may wish to include these issues with economic activity, however. Unions encompass those issues involving labor union activity. You may wish to redefine this category for yourself or combine it, in whole or in part, with economic activity. Economic activity is largely commercial and business related; it includes tort actions (issues 616-618) and employee actions vis-a-vis employers (issues 614-615, 621). Issues 650 and 652 are only tangential to the other issues located in economic activity. Judicial power concerns the exercise of the judiciary's own power. To the extent that a number of these issues concern federal-state court relationships (i.e., 701-708, 712, 754, 755), you may wish to include them in the federalism category. Federalism pertains to conflicts between the federal government and the states, except for those between the federal and state courts. Interstate relations contain two types of disputes which occur between states. Federal taxation concerns the Internal Revenue Code and related statutes. Miscellaneous contains two groups of cases that do not fit into any other category.

If interest lies in a particular issue area that has a specific legal or constitutional component, comprehensive coverage may be insured by listing not only the issue(s) that bear thereon, but also the appropriate code(s) from variable 44 (legal provisions considered by the Court). Thus, if the right to

counsel is your focus, issues 030 and 381-382 will fall within your compass, as will code "6AC0" from the LAW variable. Also recognize that the parties variables (variables 14-15) may also help locate the cases of interest.

The specific codes follow.

0 issue not able to be identified

Criminal Procedure

010 involuntary confession

013 habeas corpus (cf. 704): whether the writ should issue rather than the fact that collateral review occurred. Note that this need not be a criminal case

014 plea bargaining: the constitutionality of and/or the circumstances of its exercise

015 retroactivity (of newly announced constitutional rights)

016 search and seizure (other than as pertains to 017 and 018)

017 search and seizure, vehicles

018 search and seizure, Crime Control Act

020 contempt of court

021 self-incrimination (other than as pertains to 022 and 023)

022 Miranda warnings

023 self-incrimination, immunity from prosecution

030 right to counsel (cf. 381-382)

040 cruel and unusual punishment, death penalty (cf. 106)

041 cruel and unusual punishment, non-death penalty

050 line-up (admissibility into evidence of identification obtained after accused was taken into custody, or after indictment or information)

060 discovery and inspection (in the context of criminal litigation only, otherwise 537)

070 double jeopardy

100 extra-legal jury influences, miscellaneous: no question regarding the right to a jury trial or to a speedy trial (these belong in 190 and 191, respectively); the focus, rather, is on the fairness to the accused when jurors are exposed to the influences specified

101 prejudicial statements or evidence

102 contact with jurors outside courtroom

103 jury instructions

104 voir dire

105 prison garb or appearance

106 jurors and death penalty (cf. 040)

107 pretrial publicity

110 confrontation (right to confront accuser, call and cross-examine witnesses)

— subconstitutional fair procedure: nonsubstantive rules and procedures pertaining to the administration of justice that

do not rise to the level of a constitutional matter. This is the residual category insofar as criminal procedure is concerned. Note that this issue need not necessarily pertain to a criminal action. If the case involves an indigent, consider 381-386.

- 111 confession of error
- 112 conspiracy (cf. 163)
- 113 entrapment
- 114 exhaustion of remedies
- 115 fugitive from justice
- 116 presentation or admissibility of evidence
- 117 stay of execution
- 118 timeliness, including statutes of limitation
- 119 miscellaneous
- 120 Federal Rules of Criminal Procedure, including application of the Federal Rules of Evidence in criminal proceedings.
- statutory construction of criminal laws: these codes, by definition exclude the constitutionality of these laws
- 161 assault
- 162 bank robbery
- 163 conspiracy (cf. 112)
- 164 escape from custody
- 165 false statements (cf. 177)
- 166 financial (other than in 168 or 173)
- 167 firearms
- 168 fraud
- 169 gambling
- 171 Hobbs Act; i.e., 18 USC 1951, not 28 USC 2341, the Administrative Orders Review Act, which is also "commonly known as the Hobbs Act." 96 L ed 2d 222, at 239.
- 172 immigration (cf. 371-376)
- 173 internal revenue (cf. 960, 970, 975, 979)
- 174 Mann Act
- 175 narcotics
- 176 obstruction of justice
- 177 perjury (other than as pertains to 165)
- 178 Travel Act
- 179 war crimes
- 180 sentencing guidelines
- 181 miscellaneous
- 190 jury trial (right to, as distinct from 100-107)
- 191 speedy trial
- 199 miscellaneous criminal procedure (cf. 504, 702)

Civil Rights

- 210 voting: does not extend to reapportionment and districting, which is 250, or to litigation under the Voting Rights Act,

which is 211, or to durational residency requirements,
 which is 341. Entries are limited to cases raising consti-
 tutional questions regarding the right to vote; typically,
 but not exclusively, under the 15th or 14th Amendments.
 211 Voting Rights Act of 1965, plus amendments
 212 ballot access (of candidates and political parties)
 220 desegregation (other than as pertains to 221-223)
 221 desegregation, schools
 222 employment discrimination: on basis of race, age, or
 working conditions. Not alienage, which is 272, or gender,
 which is 284.
 223 affirmative action
 230 sit-in demonstrations (protests against racial discrimina-
 tion in places of public accommodation): to be sharply
 distinguished from protests not involving racial discrimi-
 nation. The latter are coded as 451.
 250 reapportionment: other than plans governed by the Voting
 Rights Act
 261 debtors' rights (other than as pertains to 381-388):
 replevin, garnishment, etc. Typically involve notice
 and/or hearing requirements or the takings clause.
 271 deportation (cf. 371-376)
 272 employability of aliens (cf. 371-376)
 283 sex discrimination: excluding employment discrimination
 which is 284
 284 sex discrimination in employment (cf. 283, 222)
 293 Indians (other than as pertains to 294)
 294 Indians, state jurisdiction over
 301 juveniles (cf. 321)
 311 poverty law, constitutional: typically equal protection
 challenges over welfare benefits, including pension and
 medical benefits
 312 poverty law, statutory: welfare benefits, typically under
 some Social Security Act provision. Excludes 321 and 331.
 321 illegitimates, rights of (cf. 301): typically inheritance
 and survivor's benefits, and paternity suits
 331 handicapped, rights of: under Rehabilitation Act and
 related statutes
 341 residency requirements: durational, plus discrimination
 against nonresidents
 — military (cf. 441, 705)
 361 draftee, or person subject to induction
 362 active duty
 363 veteran
 — immigration and naturalization (cf. 172, 271-272)
 371 permanent residence
 372 citizenship
 373 loss of citizenship, denaturalization
 374 access to public education

375 welfare benefits
376 miscellaneous
— indigents (cf. 311-312): procedural protections for indigents because of their indigency. Typically in matters pertaining to criminal justice.
381 appointment of counsel (cf. 030)
382 inadequate representation by counsel (cf. 030)
383 payment of fine
384 costs or filing fees
385 U.S. Supreme Court docketing fee
386 transcript
387 assistance of psychiatrist
388 miscellaneous
391 liability, civil rights acts (cf. 616-617): tort actions involving liability that are based on a civil rights act
399 miscellaneous civil rights (cf. 701)

First Amendment

401 First Amendment, miscellaneous (cf. 703): the residual category for all First Amendment litigation other than the free exercise or establishment clauses
411 commercial speech, excluding attorneys which is 544
415 libel, defamation: defamation of public officials and public and private persons
416 libel, privacy: true and false light invasions of privacy
421 legislative investigations: concerning "internal security" only
422 federal internal security legislation: Smith, Internal Security, and related federal statutes, regulations, and orders
430 loyalty oath or non-Communist affidavit (other than in 431-434)
431 loyalty oath, bar applicants (cf. 546, 548)
432 loyalty oath, government employees
433 loyalty oath, political party
434 loyalty oath, teachers
435 security risks: denial of benefits or dismissal of employees for reasons other than failure to meet loyalty oath requirements
441 conscientious objectors (cf. 361-362): to military service
444 campaign spending (cf. 650): financing electoral costs other than as regulated by the Taft-Hartley Act. Typically involves the Federal Election Campaign Act.
451 protest demonstrations (other than as pertains to 230): demonstrations and other forms of protest based on First Amendment guarantees other than the free exercise or establishment clauses
455 free exercise of religion

461 establishment of religion (other than as pertains to 462)
462 parochiaid: government aid to religious schools, or religious requirements in public schools
471 obscenity, state (cf. 706): including the regulation of sexually explicit material under the 21st Amendment
472 obscenity, federal

Due Process

501 due process, miscellaneous (cf. 431-434, 618): the residual code for cases that do not locate in 502-507
502 due process, hearing or notice (other than as pertains to 503 or 504)
503 due process, hearing, government employees
504 due process, prisoners' rights
505 due process, impartial decision maker
506 due process, jurisdiction (jurisdiction over non-resident litigants)
507 due process, takings clause, or other non-constitutional governmental taking of property

Privacy

531 privacy (cf. 416, 707)
533 abortion: including contraceptives
534 right to die
537 Freedom of Information Act and related federal statutes or regulations

Attorneys

542 attorneys' fees
544 commercial speech, attorneys (cf. 411)
546 admission to a state or federal bar, disbarment, and attorney discipline (cf. 431)
548 admission to, or disbarment from, Bar of the U.S. Supreme Court

Unions

553 arbitration (in the context of labor-management or employer-employee relations) (cf. 653)
555 union antitrust: legality of anticompetitive union activity
557 union or closed shop: includes agency shop litigation
559 Fair Labor Standards Act
561 Occupational Safety and Health Act
563 union-union member dispute (except as pertains to 557)
— labor-management disputes (other than those above)
575 bargaining

- 576 employee discharge
- 577 distribution of union literature
- 578 representative election
- 579 antistrike injunction
- 581 jurisdictional dispute
- 582 right to organize
- 583 picketing
- 584 secondary activity
- 585 no-strike clause
- 586 union representatives
- 587 union trust funds (cf. 621)
- 588 working conditions
- 589 miscellaneous dispute
- 599 miscellaneous union

Economic Activity

- 601 antitrust (except in the context of 605 and 555)
- 605 mergers
- 611 bankruptcy (except in the context of 975)
- 614 sufficiency of evidence: typically in the context of a jury's determination of compensation for injury or death
- 615 election of remedies: legal remedies available to injured persons or things
- 616 liability, governmental: tort actions against government or governmental officials other than actions brought under a civil rights action. These locate in 391.
- 617 liability, nongovernmental: other than as in 614, 615, 618
- 618 liability, punitive damages
- 621 Employee Retirement Income Security Act (cf. 587)
- 626 state tax (those challenged on the basis of the supremacy clause and the 21st Amendment may also locate in 931 or 936)
- 631 state regulation of business (cf. 910, 911)
- 636 securities, federal regulation of
- 638 natural resources - environmental protection (cf. 933, 934)
- 650 corruption, governmental or governmental regulation of other than as in 444
- 652 zoning: constitutionality of such ordinances
- 653 arbitration (other than as pertains to labor-management or employer-employee relations (cf. 553)
- 656 federal consumer protection: typically under the Truth in Lending; Food, Drug and Cosmetic; and Consumer Protection Credit Acts
- patents and copyrights
 - 661 patent
 - 662 copyright
 - 663 trademark
 - 664 patentability of computer processes

- ___ federal transportation regulation
 - 671 railroad
 - 672 boat
 - 673 truck, or motor carrier
 - 674 pipeline (cf. 685)
 - 675 airline
- ___ federal public utilities regulation (cf. 935)
 - 681 electric power
 - 682 nuclear power
 - 683 oil producer
 - 684 gas producer
 - 685 gas pipeline (cf. 674)
 - 686 radio and television (cf. 687)
 - 687 cable television (cf. 686)
 - 688 telephone company
- 699 miscellaneous economic regulation

Judicial Power

- ___ comity, criminal and First Amendment (cf. 712): propriety of federal court deference to ongoing state judicial or state or federal quasi-judicial proceedings, the abstention doctrine, exhaustion of state provided remedies
 - 701 civil rights
 - 702 criminal procedure
 - 703 First Amendment
 - 704 habeas corpus
 - 705 military
 - 706 obscenity
 - 707 privacy
 - 708 miscellaneous
- 712 comity, civil procedure (cf. 701-708): propriety of federal court deference to ongoing state judicial or state or federal quasi-judicial proceedings, the abstention doctrine, exhaustion of state provided remedies
- 715 assessment of costs or damages: as part of a court order
- 717 Federal Rules of Civil Procedure, including application of the Federal Rules of Evidence and the Federal Rules of Appellate Procedure in civil litigation
- 721 judicial review of administrative agency's or administrative official's actions and procedures
- 731 mootness (cf. 806)
- 741 venue
- ___ no merits: use only if the syllabus or the summary holding specifies one of the following bases
 - 751 writ improvidently granted: either in so many words, or with an indication that the reason for originally granting the writ was mistakenly believed to be present

- 752 dismissed for want of a substantial or properly presented federal question
- 753 dismissed for want of jurisdiction (cf. 853)
- 754 adequate non-federal grounds for decision
- 755 remand to determine basis of state court decision (cf. 858)
- 759 miscellaneous
- standing to sue
 - 801 adversary parties
 - 802 direct injury
 - 803 legal injury
 - 804 personal injury
 - 805 justiciable question
 - 806 live dispute
 - 807 parens patriae standing
 - 808 statutory standing
 - 809 private or implied cause of action
 - 810 taxpayer's suit
 - 811 miscellaneous
- judicial administration (jurisdiction of the federal courts or of the Supreme Court) (cf. 753)
 - 851 jurisdiction or authority of federal district courts
 - 852 jurisdiction or authority of federal courts of appeals
 - 853 Supreme Court jurisdiction or authority on appeal from federal district courts or courts of appeals (cf. 753)
 - 854 Supreme Court jurisdiction or authority on appeal from highest state court
 - 855 jurisdiction or authority of the Court of Claims
 - 856 Supreme Court's original jurisdiction
 - 857 review of non-final order; i.e., allegation that the decision below is not a final judgment or decree, or that it is an interlocutory judgment (cf. 753)
 - 858 change in state law (cf. 755)
 - 859 federal question (cf. 752)
 - 860 ancillary or pendent jurisdiction
 - 861 extraordinary relief
 - 862 certification (cf. 864)
 - 863 resolution of circuit conflict, or conflict between or among other courts
 - 864 objection to reason for denial of certiorari (cf. 862)
 - 865 collateral estoppel or res judicata
 - 866 interpleader
 - 867 untimely filing
 - 868 Act of State doctrine
 - 869 miscellaneous
 - 870 Supreme Court's certiorari jurisdiction
- 899 miscellaneous judicial power

Federalism

- 900 federal-state ownership dispute (cf. 920)
- 910 federal pre-emption of state court jurisdiction: almost always found in the context of labor union activity. Does not involve constitutional interpretation. Rests rather on a primary jurisdiction rationale.
- 911 federal pre-emption of state regulation (cf. 631): rarely involves union activity. Does not involve constitutional interpretation.
- 920 Submerged Lands Act (cf. 900)
- national supremacy: in the context of federal-state constitution flits involving the general welfare, supremacy, or interstate commerce clauses, or the 21st Amendment. Distinguishable from 910 and 911 because of a constitutional basis for decision.
- 930 commodities
- 931 intergovernmental tax immunity
- 932 marital property, including obligation of child support
- 933 natural resources (cf. 638)
- 934 pollution, air or water (cf. 638)
- 935 public utilities (cf. 681-688)
- 936 state tax (cf. 626)
- 939 miscellaneous
- 949 miscellaneous federalism (cf. 294, 701-708, 712, 754-755, 854, 858, 860)

Interstate Relations

- 950 boundary dispute between states
- 951 non-real property dispute between states
- 959 miscellaneous interstate relations conflict

Federal Taxation

- 960 federal taxation (except as pertains to 970 and 975): typically under provisions of the Internal Revenue Code
- 970 federal taxation of gifts, personal, and professional expenses
- 975 priority of federal fiscal claims: over those of the states or private entities
- 979 miscellaneous federal taxation (cf. 931)

Miscellaneous

- 980 legislative veto
- 989 miscellaneous

Variable 37

issue areas (VALUE)

This variable simply separates the issues identified in the preceding variable into the discrete issue areas that the issue variable contains. These are listed in SPSS.

Note that if a case contains multiple issues that transcend a single value, the substantive value (1-8, 11-13) will typically appear in the first record of the case, succeeded by the procedural value (9 or 10).

Variables 38-44

direction of decision (DIR, MDIR, DIR4, DIR5, DIR6, DIR7, DIR8)

Specification of direction comports with conventional usage for the most part except for the interstate relations and the miscellaneous issues. A 0 has been entered in the respective DIR variables of these cases either because the issue does not lend itself to a pro or con description (e.g., a boundary dispute between two states), or because no convention exists as to which is the pro side and which is the con side (e.g., issue 980, the legislative veto). Except for these cases and those in which a tied vote or lack of information precludes a determination of how the Court resolved the issue in the case, each issue in each case will either indicate a liberal or a conservative outcome.

Direction is rarely specified in any informally decided cases (DEC_TYPE = 3, see variable 46) either because the vote in such cases is a preliminary one and as such not amenable to direction (see variables 66-78) or because of a lack of information identifying the issue in the case (see variable 36). In formally decided cases, a 0 may appear in one of the other of the DIR variables. Such an entry does not indicate a change in the direction of the Court's decision, but rather the absence of a merits vote or a report vote independent of that in another case docketed under the same citation as the docket with DIR=0. E.g., *Colgate-Palmolive Co. v. Cook Chemical Co.*, docket 43, 383 U.S. 1, in which the justices cast no report vote separate from that cast in the other two cases decided under this same citation.

Direction differs from one vote to another in a given docket only if between or among given DIR votes some =1 while others =2.

The DIR variable governs the formal vote in the case based on the issue to which the specific record in the case pertains. Recall that some dockets display multiple issues, with those beyond the first identified by ANALU=2 (see variable 5). Each such issue need not be resolved in the same direction as the others. Thus, for example, a federalism issue may be decided conservatively (pro-state) while its economic regulatory compo-

nent produces a liberal (anti-business) outcome.

DIR governs the direction of the case's final report vote;
MDIR the direction of the case's final conference vote on the
merits; DIR4-DIR8 the direction of any merits or report votes
that the case contains other than the final one.

In order to determine whether the Court supported or opposed
the issue to which a given case pertains, the following scheme is
employed.

in the context of issues pertaining to criminal proced-
ure, civil rights, First Amendment, due process, priva-
cy, and attorneys

1 = pro-person accused or convicted of crime, or denied a
jury trial
pro-civil liberties or civil rights claimant, espe-
cially those supporting less protected civil
rights (e.g., homosexuality
pro-indigent
pro-Indian
pro-affirmative action
pro-neutrality in religion cases
pro-female in abortion
pro-accountability in campaign spending
pro-underdog
anti-government in the context of due process, except
for takings clause cases where a pro-government,
anti-owner vote is considered liberal except in
criminal forfeiture cases
pro-attorney
pro-disclosure in 537 issues except for employment and
student records

2 = reverse of above

in the context of issues pertaining to unions and eco-
nomic activity

1 = pro-union except in union antitrust (issue = 555)
where 1 = pro-competition
anti-business
anti-employer
pro-competition
pro-liability
pro-injured person
pro-indigent
pro-small business vis-a-vis large business
pro-debtor
pro-bankrupt

pro-Indian
pro-environmental protection
pro-economic underdog
pro-consumer
pro-accountability in governmental corruption
anti-union member or employee vis-a-vis union
anti-union in union antitrust
pro-trial in arbitration

2 = reverse of above

in the context of issues pertaining to judicial power

1 = pro-exercise of judicial power
pro-judicial "activism"
pro-judicial review of administrative action

2 = reverse of above

in the context of issues pertaining to federalism

1 = pro-federal power
anti-state

2 = reverse of above

in the context of issues pertaining to federal taxation

1 = pro-United States

2 = pro-taxpayer

in interstate relations and miscellaneous issues

0 for all such cases

This variable will also contain a 0 where one state sues another under the original jurisdiction of the Supreme Court and where parties or issue cannot be determined because of a tied vote or lack of information.

Each issue in cases containing multiple issues is to have direction assigned for each issue in accordance with the above schedule.

Variable 45
direction of decision based on dissent (DIRD)

Once in a great while, the majority as well as the dissenting opinion in a case will both support or, conversely, oppose

the issue to which the case pertains. Thus, for example, the majority and the dissent may both assert that the rights of a person accused of crime have been violated. The only difference between them is that the majority votes to reverse the accused's conviction and remand the case for a new trial, while the dissent holds that the accused's conviction should be reversed, period. In such cases, the entry in the preceding variable should be determined relative to whether the majority or the dissent more substantially supported the issue to which the case pertains, and an asterisk should appear in this variable. Thus, in the foregoing example, the direction of decision variable should contain a 2 because the majority provided the person accused of crime with less relief than does the dissent, and direction based on dissent should show a 1. The person accused of crime actually won the case, but won less of a victory than the dissent would have provided.

DIRD variables governing the other votes that the database includes are superfluous because the votes in these other variables either lack supporting opinions -- i.e., merits votes -- or are entered strictly in accord with the disposition the individual justice makes of the controversy; e.g., affirm, reverse, modify.

The appearance of a 1 in the DIRD variable will undoubtedly signal a discrepancy between the final vote as I have designated it and the alternative coding of this vote that the database also provides: the VOTE (see the vote in the case, variable 58). As for the merits vote, the docket books supply only the justices' votes. Direction, therefore, literally derives from these votes and not from more or less incremental differences in the relief that one justice would provide as compared to that afforded by another justice.

outcome variables

Variable 46 type of decision (DEC_TYPE)

Choice of a unit of analysis (see variable 5) does not end with a selection of citation, docket number, or one of the other options that ANALU provides. Users must also choose among the types of decisions that the Supreme Court renders. SPSS identifies these.

DEC_TYPE=1: Cases in which the Court hears oral argument and which it decides by a signed opinion. These are the Court's so-called formally decided full opinion cases.

DEC_TYPE=2: Cases decided with an opinion but without hearing oral argument; i.e., per curiam.

DEC_TYPE=3: Memorandum cases. These are summary decisions that deal with petitions for certiorari and appeals, requests of individuals and organizations to participate as amicus curiae, and various other motions, orders, and writs. These are segregated from the other types of decisions by their location in the back of the various volumes of the *United States Reports* beginning at page 801 or 901 or later. The database contains only the small fraction in which at least one justice wrote an opinion.

DEC_TYPE=4: Decrees. This infrequent type of decision usually arises under the Court's original jurisdiction and involves state boundary disputes. The justices will typically appoint a special master to take testimony and render a report, the bulk of which generally becomes the Court's decision. The presence of the label, "decree," distinguishes this type of decision from the others.

DEC_TYPE=5: Cases decided by an equally divided vote. When a justice fails to participate in a case or when the Court has a vacancy, the participating justices may cast a tie vote. In such cases, the Reports merely state that "the judgment is affirmed by an equally divided vote" and the name of any nonparticipating justice(s). Their effect is to uphold the decision of the court whose decision the Supreme Court reviewed. Use of the justices' docket books rather than the Reports has enabled us to include how each of the participating justices voted in these cases (see variables MAR to OCON).

DEC_TYPE=6: This decision type is a variant of the formally decided cases (DEC_TYPE=1). It differs from type 1 only in that no individual justice's name appears as author of the Court's opinion. This is not to say that no justice was assigned to write the Court's opinion in these cases, but rather that the Court's opinion lacks a named author. The chief justice's assignment sheets show an opinion assignment in many of these cases (see variables 52, 53). Nonetheless, these unsigned, orally argued cases are labeled as decided "per curiam." The difference between this type and DEC_TYPE=2 is the presence of oral argument in the former but not the latter. In both types the opinion of the Court is unsigned -- i.e., per curiam.

DEC_TYPE=7: Judgments of the Court. This decision type is also a variant of the formally decided cases. It differs from type 1 in that less than a majority of the participating justices agree with the opinion produced by the justice assigned to write the Court's opinion. Unless you are interested only in the authors of the opinions of the Court, DEC_TYPE=7 should be included in any analysis of the Court's formally decided cases.

The database contains all citations in which at least one docket was subject to at least one vote as documented by the justices' docket books are included. Consequently, the database contains all types 1, 4, 5, 6 and 7 except those arising under the Court's original jurisdiction.

Variable 47
disposition of case (DIS)

The treatment the Supreme Court accorded the court whose decision it reviewed is contained in this variable; e.g., affirmed, vacated, reversed and remanded, etc.

SPSS specifies the values of this variable. They are substantially the same as those in LODIS (variable 16).

Variable 48
unusual disposition (DISQ)

A '1' appears in this variable (DISQ) to signify that the Court made an unusual disposition of the cited case which does not match the coding scheme of the preceding variable.

Variable 49, 95, 127, 145, 162, 179, 196
winning party (WIN, MWIN, WIN4, WIN5, WIN6, WIN7, WIN8)

A '1' in any of these variables indicates that the petitioning party -- i.e., the plaintiff or the appellant -- emerged victorious from the specific vote to which the particular 'win' variable applies.

Note that the MWIN, WIN4, WIN5, WIN6, WIN7, and WIN8 variables appear with the set of final conference vote data (BURG2 to BLC2) and the sets of nonfinal vote data (MAR4-CON4 . . . MAR8-CON8).

The victory the Supreme Court provided the petitioning party may not have been total and complete (e.g., by vacating and remanding the matter rather than an unequivocal reversal), but the disposition is nonetheless a favorable one. Generally speaking, a favorable disposition (see the two preceding variables) is anything other than "affirmed," "denied," or "dismissed." Exceptions, however, occasionally occur. Hence, it is more accurate to use these variables rather than the disposition variables (variables 47 and 48) to determine the prevailing party.

Note that in cases containing multiple docket numbers, not every petitioning party will necessarily receive the same disposition. Hence, in focusing on the outcome of the Court's decisions, docket number seems preferable as the unit of analysis (see variable 5) rather than case citation.

Variable 50
formal alteration of precedent (ALT_PREC)

A '1' will appear in this variable if the majority opinion effectively says that the decision in this case "overruled" one or more of the Court's own precedents. Occasionally, in the absence of language in the prevailing opinion, the dissent will state clearly and persuasively that precedents have been formally altered: e.g., the two landmark reapportionment cases: *Baker v. Carr*, 369 U.S. 186 (1962), and *Gray v. Sanders*, 372 U.S. 368 (1963). Once in a great while the majority opinion will state -- again in so many words -- that an earlier decision overruled one of the Court's own precedents, even though that earlier decision nowhere says so. E.g., *Patterson v. McLean Credit Union*, 99 L Ed 2d 879 (1988), in which the majority said that *Braden v. 30th Judicial Circuit of Kentucky*, 410 U.S. 484, 35 L Ed 2d 443 (1973) overruled a 1949 decision. On the basis of this later language, the earlier decision will contain a '1' in this variable. Formal alteration also extends to language in the majority opinion that states that a precedent of the Supreme Court has been "disapproved," or "is no longer good law."

Note, however, that formal alteration does not apply to cases in which the Court "distinguishes" a precedent. Such language in no way changes the scope of the precedent contained in the case that has been distinguished.

Do not assume that each record indicates the formal alteration of a separate precedent. A given citation may have several docket numbers, each of which is governed by a single opinion in which only one precedent was altered. Conversely, an opinion in a citation with a single docket number may formally alter a whole series of Supreme Court precedents. To determine the number of formally altered precedents, carefully read the prevailing opinion in each citation that has an entry in this variable.

Variable 51
declarations of unconstitutionality (UNCON)

An entry in this variable indicates that the Court either declared unconstitutional an act of Congress; a state or territorial statute, regulation, or constitutional provision; or a municipal or other local ordinance.

An entry should appear in the record that lists the law declared unconstitutional. An entry should also appear in the record containing the constitutional or statutory provision that served as the basis for the declaration of unconstitutionality. None will appear when the Court merely cites a previous decision that has already been used to void the provision at issue; e.g., *Grisham v. Hagan*, 361 U.S. 278, and *McElroy v. Guagliardo*, 361

U.S. 281 (1960).

Where federal law pre-empts a state statute or a local ordinance, unconstitutionality does not result unless the Court's opinion so states.

As with the preceding variable, do not assume that each of these records pertains to a separate statutory or constitutional provision. The Court will not uncommonly declare a particular statute void on several bases, or a number of dockets may pertain to the same voided law.

Variables 52, 53
opinion assigner (ASSIGNR1, ASSIGNR2)

These variables contain the name of the justice who assigned the Court's opinion. The second of these variables is empty if only one assignment was made. The same justice's name may appear in both variables if he made more than a single assignment in the case. This occasionally occurs. The assignment made by ASSIGNR1 always occurred prior to that made by ASSIGNR2. In a handful of cases the Court made three assignments -- too few to warrant a separate variable. These cases may be identified by reference to those having a third assignee (see variable 56).

Determination of who made the assignment was had by reference to the assignment sheets of the chief justices.

Do note that the identified assigner does not always appear as a member of the majority opinion coalition (see variables 98-110). Burger was reputed to switch his vote frequently in order to control the opinion assignment. That presumably happened in these cases. Also note that orally argued per curiam decisions (DEC_TYPE=6; see variable 46) not uncommonly list an assigner as well as an assignee who is not a member of the majority opinion coalition. The fact that these are per curiam decisions probably produced a degree of informality on the part of both assigner and assignee.

Variables 54-56
opinion assignee (AUT1ST, AUT2ND, AUT3RD)

These variables list the name of the justice who was assigned the opinion of the Court. Multiple assignments are not uncommon. The original assignee may lose his majority; he may decline the task after the fact; or the opinion may be announced per curiam even though an assignment was made.

Where more than one assignment occurred, or where the same justice was twice assigned a case, the assignees are listed in chronological order. In no case did the Court make more than three assignments.

voting and opinion variables

The remaining variables cover the range of judicial voting behavior. The database considers voting from a number of different standpoints and perspectives as these variables indicate. Because voting is key to most uses to which the database will be put, users should become thoroughly familiar with these data and their interrelationships.

Variable 57
the vote in the case (VOTE)

This variable specifies the vote in the case as determined by reference to the Court's published reports. Voting conventions differ among scholars. In compiling the VOTE, I count justices who filed a jurisdictional dissent as not participating in the decision. The fact that a vote is labeled a concurrence or a dissent does not necessarily make it so; VOTE involves my exercise of discretion. Thus, it is sometimes facially unclear whether a given vote is a concurrence or a dissent.

The decision rules governing entries in the VOTE variable may be found below. The vote that appears in this variable pertains to the number of justices who agree with the disposition made by the majority (see disposition of case, variable 47) and not to the justices' vote on any particular issue in the case (see variable 36) except where the unit of analysis (ANALU) = 4. Thus, for example, in *Bates v. Arizona State Bar*, 433 U.S. 350 (1977), the vote in the case was 5 to 4, even though all participants agreed that the disciplinary rule prohibiting attorney advertising did not violate the Sherman Act. Unlike the majority, the dissenters disagreed that the rule violated the First Amendment.

To reiterate, only dissents on the merits are specified in the VOTE variable. Jurisdictional dissents as well as dissents from the denial of certiorari (see the discussion of these votes in the report votes, opinions, and interagreements of the individual justices) are counted as though the justice so voting did not participate in the case.

Variable 58
vote not clearly specified (VOTEQ)

If the vote in the case (variable 57) is unclear, this variable will so indicate.

Variables 60, 61
minimum winning coalitions (MWC, MWCMRTS)

These variables contain a '1' if the final report vote or merits vote in the case was decided by a margin of one vote.

(Tied votes are not included because they contain no majority or plurality opinion and, as such, only automatically affirm the decision of the lower court without explanation.) Minimum winning coalitions are those decided 5-4 and 4-3, or by a 5-3 or 4-2 vote that reverses the decision of the lower court.

* * * * *

The next four sets of variables specify the votes of the individual justices in the types of votes that the Court takes in the individual cases on its dockets. Coupled with the justices' votes are the type of vote that the Court took (VOTETYP_), how many votes of that type the Court cast in the case (SEQ_), whether the vote was unclear (_VOTEQ), whether the petitioning party won or lost (WIN_), and the voting division that resulted (VOTE_).

We begin with VOTETYP. VOTETYP1 is the final preliminary vote cast in the case, typically either a writ of certiorari or appeal. Because variable 7 (manner in which the Court took jurisdiction) indicates which it is, VOTETYP1 contains no entry for most cases. In analyses limited to formally decided cases; i.e., anything other than summary, or memorandum, decisions (see type of decision, variable 46), VOTETYP2 is invariably the final MRTS vote. Like VOTETYP1, I have left this variable blank simply because of its invariant character. If, however, variable 46 indicates that the case is a summary decision, a vote other than the final merits vote may appear in VOTETYP2 -- for the obvious reason that summary decisions, by definition, contain no MRTS vote. The database contains no VOTETYP3, which is the final report vote, because this information is adequately provided in variable 46 (type of decision). To determine whether a case contains a final report vote and its character, select dec_type=1, 6, and 7).

All entries in VOTETYP4 through VOTETYP8 are nonfinal votes of various types. A vote of any name may appear in any of these variables for any given case, whether formally or informally decided. The various nonfinal votes appear in VOTETYP4-VOTETYP8 in chronological order.

To repeat, apart from summarily decided cases, VOTETYP1 will always contain the **final** cert vote or, in a case arising on a writ of appeal, the **final** vote noting probable jurisdiction. VOTETYP2 will always be the **final** merits vote.

As explained in the preceding paragraph, the database's vote variables are of three types: preliminary, merits, and report. Excluding the informally decided cases, the first vote type variable (VOTETYP1) contains the last preliminary vote preceding the last merits vote cast in the case: almost always the grant or

denial of certiorari or a write of appeal. The second variable (VOTETYP2) holds the final merits vote cast preceding the final report vote. If the justices did not cast one or the other of these votes in a particular case, the dedicated votetype variable has no entry. Preliminary, merits, and report votes other than as specified are **nonfinal** and locate in variables subsequent to the third (VOTETYP4-VOTETYP8).

In many cases the justices do cast more than one cert or merits votes. Rarely more than a single report vote, however. In order to ascertain the number of such votes of a given VOTETYP the case has, a sequence (SEQ_) of vote type variables was created. Thus, if three cert votes were cast in a given case prior to the final merits vote, VOTETYP1 = CERT and SEQ1 = 3. If these are the only multiple votes, VOTETYP4 and VOTETYP5 will also read CERT, with SEQ4 = 1 and SEQ5 = 2.

Apart from the dedicated VOTE variables, VOTETYP4 through VOTETYP8 appear in chronological order. Thus, if a case has three 'dismiss' votes and no other multiples, they will be listed as 'dismiss' in chronological order in VOTETYP4, VOTETYP5, and VOTETYP6, with SEQ4=1, SEQ5=2, and SEQ6=3. The final 'dismiss' will not appear as VOTETYP1 in any formally decided case because it is neither a cert nor a note probable jurisdiction vote.

In the vast majority of cases, the individual justices clearly indicate whether or not they agree with the disposition (see variables 47, 48) made by the majority. In a few records clarity is lacking, as when a justice concurs in part and dissents in part. A justice will typically use this or equivalent language to indicate agreement with the reasoning in a portion of the majority opinion while disagreeing with the majority's disposition of the case, or vice-versa. With regard to the final report vote a close reading of the justice's opinion usually indicates whether he has concurred (i.e., agreed with the majority's disposition) or dissented from the disposition made by the majority. Opinions, of course, rarely accompany votes other than the report vote. Hence, in the rare case where a justice does not clearly indicate his vote, a '1' will appear in the relevant variable.

This datum is not provided for the fifth through eighth VOTETYPs of any record: only for the variables PVOTEQ, MVOTEQ, VOTEQ, and VOTEQ4.

Associated with the justices' votes for each type of vote cast in a case is a summary total of the voting division: PVOTE, MVOTE, VOTE4-VOTE8. The vote in the case (variable 57) specifies the final report vote. Except for summary back-of-the-book decisions; i.e., DEC_TYPE=3, these votes are systemically allocated. PVOTE will always contain the final cert vote or the vote noting probable jurisdiction that antedates the final merits vote (MVOTE). Thus, if a case has three cert votes two of which antedate the first of two merits votes, the PVOTE will be the

third cert vote. Similarly, the MVOTE always contains the last conference vote on the merits preceding the final report vote that the justices cast in the case governed by the citation. In the foregoing example, the second merits vote. Other votes will invariably appear in chronological order in VOTE4 to VOTE8. Thus, in the example the first PVOTE would appear in VOTE4, the second in VOTE5, and the first merits vote in VOTE6. If this case also contained an amicus or other preliminary vote other than cert or noting probable jurisdiction, it would appear in chronological order beginning with VOTE4 and not after VOTE8.

This unvarying pattern does not apply to DEC_TYPE=3 decisions (see variable 46). Strict chronological sequencing governs their order.

The specific vote that may appear in the PVOTE variable or in any VOTE variable of an informally decided case may range from 90 to 10 if the action requested has been granted or 1 to 9 if the action was denied. Of course, no justice need necessarily cast a substantive vote in which case the relevant VOTE variable = 0.

Not uncommonly only a couple of the justices may participate in preliminary votes. Formally decided cases, however, require a quorum -- six justices. Other than in preliminary votes of whatever name, the larger vote always appears first, followed by the dissenting votes, if any. If none, a zero is entered. By relating the vote to the direction of decision variables (38-44), one can ascertain whether the case was conservatively or liberally decided. Direction, however, does not apply to preliminary votes. These indicate only the grant or denial of the specified action. Determination of which course the justices took is most directly obtained by cueing on the column containing the larger number. If the first column, the Court acceded to the requested action; if the second, it did not. If the participating justices unanimously denied the request, the first column will be empty. In numerical variables, such as this, SPSS produces no entry if a 0 has been entered in the second last column.

**the coded preliminary, merits, and report votes of
the individual justices
(OCON1 TO BLC1, BURG2 TO BLC2, MAR4 TO OCON4 . . . MAR8 TO OCON8)**

Associated with the preceding variables (VOTETYP, SEQ, VOTEQ, WIN, and VOTE) are the votes of the individual justices arrayed in eight distinctive sets, seven of which are explained here.

These variables include the coded votes of each justice in the preliminary and merits vote variables (VOTETYP1 and VOTETYP2), plus the five nondedicated vote variables (VOTETYP4-VOTETYP8). The votes the individual justices cast at the final report vote are distinctively coded (see the next variable).

The coding employed in these variables - **except for the final report vote of the justices** - consists essentially of two dichotomized sets of votes, one set representing various types of grants and reversals, the other representing denials and affirmations. I combine the symbols for grants and reversals together because grants locate in the preliminary vote variables, reversals in the merits and reports variables. The same is true of denials and affirmations. Denials predominate in preliminary voting, affirmations in merits and reports voting. As previously explained, preliminary votes are those appearing anywhere in VOTETYP1, VOTETYP4-VOTETYP7 that are not labeled MRTS or REPT.

The codes that apply to these variables are listed below. Note that upper and lower case letters have opposite meanings. Do not confuse them. They are case specific. Note also that in a preliminary vote the following codes lend themselves to both preliminary and merits/report votes. In the former they translate as grant or deny; in the latter as reverse or affirm.

grant/reverse: a, b, C, E, G, J, K, M, N, P, R, s, T, T1,
V, Y, Z, @, #, 3, 4

deny/affirm: A, B, D, e, F, g, I, m, r, S, v, w, y

no decision/participation: H, O, p, Q, U, W, X, ?, no,
blank columns

The specific meaning of the upper case symbols derives from Jan Palmer's book, *The Vinson Court Era: The Supreme Court's Conference Votes* (New York: AMS Press, 1990), p. 160:

A=affirm, B=no or disapproved, C=change or certify, D=deny or refuse, E=to call for a response brief, F=remove from docket, G=grant, H=hold, relist, ask solicitor general, I=moot, J=modify or partial, K=hear, L=limit, M=remand, N=note probable jurisdiction, O=reserve judgment, P=postpone or defer consideration, Q=question mark or tentative or not at rest, R=reverse, S=dismiss, T=discharge rule, T1=transfer under provisions Title 28 of the U.S. Code, U=reargue, V=vacate, W=stay, X=pass, Y=yes or approved Z=without prejudice, @=not final, #=issue rule, 3=join three, 4=join four.

Note that I count '3' and '4' as grant votes even if they are insufficient to produce a certiorari grant.

I added the lower case entries in order to provide for a more precise indication of direction in the merits and report votes. Note that not uncommonly both columns of a justice's vote variable will contain an entry. Thus, AQ, GR, VM. Where the second entry is a Q, O, or ? one may assume the original entry is less firm than that of those who do not display any of them.

This variable exists for the convenience of those users who wish to distinguish among the entries specified above. Other

users, however, will prefer the dichotomization of these variables into one common symbol denoting grant/reverse (=1) and an alternate one indicating deny/affirm (=2). This has been done in the next variable (the dichotomized preliminary and merits votes).

**the dichotomized preliminary and merits votes
(OCON1GD TO BLCGD, BURG2RA TO BLC2RA)**

This variable recodes the final preliminary and merits vote of the individual justices into three exhaustive subsets: grant/reverse, deny/affirm, not participating. I employ the following coding:

grant/reverse	= 1
deny/affirm	= 2
nonparticipation	= 0

The abbreviations used for these variables (GD and RA) were mnemonically chosen to represent grant/deny and reverse/affirm.

**the report votes, opinions, and interagreements
of the individual justices
(MAR to OCON, MARV to OCONV, MARO to OCONO, MARA1 to OCONA1,
MARA2 to OCONA2)**

This portion of the database focuses on the individual justices' report votes and their opinion and interagreement behavior associated therewith. Five separate variables have been created for each of the justices who have served on the Burger Court. 1) The first of these five variables – MAR to OCON – holds the individual justice's report vote, the opinion if any that that justice wrote in the case, and the abbreviated code for the name of any other justice(s) with whose dissenting or concurring opinion the subject justice agreed. 2) The second variable – MARV to OCONV – only contains the justice's vote; 3) the third – MARO to OCONO – whether the subject justice wrote an opinion; 4) the fourth – MARA1 to OCONA1 – a dissenting or concurring opinion of another justice signed by the subject justice; and 5) the fifth – MARA2 to OCONA2 – a second dissenting or concurring opinion with which the subject justice agreed.

These justices and their name abbreviations follow.

Marshall	= MAR
White	= BW
Stewart	= STWT
Brennan	= BRN
Harlan	= HAR
Douglas	= DOUG

Black	=	BLC
Burger	=	BURG
Blackmun	=	BLKM
Powell	=	POW
Rehnquist	=	REHN
Stevens	=	STEV
O'Connor	=	OCON

As explained above, the first of these five variables has four columns, while the last four constitute a breakout of the datum contained in each of the four separate columns of the justice's original variable. For example, assume that the entries in DOUG for a given record reveal the following data: 21BT. Variable DOUGV (for Douglas' vote) will contain a '2'; DOUGO (for Douglas' opinion) a '1'; DOUGA1 (for the abbreviated name of the justice who wrote a dissent or concurrence with which Douglas agreed) a 'B'; and DOUGA2 (for the abbreviated name of a second justice with whose dissent or concurrence Douglas also agreed) a 'T'. Accordingly, in this case, Douglas dissented and wrote an opinion; he also agreed with a dissenting opinion that Black wrote, as well as one written by Warren.

A justice may engage in one of eight types of voting behavior insofar as his four-column variable and the first of his one-column breakout variables (the one that attaches a "V" to the end of the above set of abbreviated names) is concerned.

1st column: 1 = voted with majority
2 = dissent
3 = regular concurrence (agreement with the Court's opinion as well as its disposition)
4 = special concurrence (agreement with the Court's disposition but not its opinion)
5 = nonparticipation
6 = judgment of the Court
7 = dissent from a denial or dismissal of certiorari (literally and only such a dissent), or dissent from summary affirmation of an appeal
8 = jurisdictional dissent (disagreement with the Court's assertion of jurisdiction without addressing the merits, or without providing the parties oral argument)

The second column of each justice's four-column variable and that of his "O" variable specifies whether the justice wrote an opinion (=1), wrote an opinion jointly with (an)other justice (=2), or did not write an opinion at all (=).

The third and fourth columns of each justice's four-column variable and that of his "A1" and "A2" variables indicate whether the justice agreed with a special opinion written by some other justice. A special opinion is an opinion other than the opinion or judgment of the Court. I have assigned a letter to each of the justices who sat on the Burger Court according to the following schedule:

Harlan	= A
Black	= B
Douglas	= C
Stewart	= D
Marshall	= E
Brennan	= F
White	= G
Burger	= H
Blackmun	= I
Powell	= J
Rehnquist	= K
Stevens	= M
O'Connor	= N

If a justice agreed with the opinion of two different justices, the letter signifying the second justice appears in the fourth column of the agreeing justice's variable. If said justice agreed with more than two justices, or wrote more than one opinion in a single case an asterisk appears in the third column of said justice's variable.

Note that a justice cannot agree with another justice's special opinion unless said justice shows a '2,' '3,' '4,' '7,' or '8' in the first column of his or her variable. If the justice agrees with the opinion or judgment of the Court, a '1' will appear in the first column. And if a '5' or a blank appears, indicating nonparticipation or nonmembership on the Court at the time the vote was cast, the justice by definition could not have agreed with anyone else's opinion.

Also note that if no entry appears in the first column of a justice's variable, of necessity the other three columns must also be empty. No entry in the variable means that the justice to whom that variable belongs was not a member of the Court when that case was decided, or that a particular justice may have been a member of the Court at that time but the case was decided by a tie vote. The Reports only publish the name(s) of the nonparticipating justice(s) in such cases, but these votes do appear in the justices' docket books and, hence, in the individual justice's relevant merits vote (VOTE2) variable.

Determination of how a given justice voted and whether or not he or she wrote an opinion is by no means a simple matter of culling the Reports. The justices do not always make their ac-

tions clear. Therefore, decision rules must be formulated. Furthermore, notwithstanding resort to the decision rules presented below, a judgment – not necessarily bright line – needs be made as to how the justices voted and whether or not an opinion was written.

For the purpose of determining which option a justice chose, the following decision rules apply:

1) Where a justice specifies that the opinion applies to an additional case or cases, the opinion is counted as so many separate ones. Thus, the opinions of Brennan and Marshall in *Mobile v. Bolden*, 446 U.S. 55, also apply to *Williams v. Brown*, 446 U.S. 236. Hence, each of these opinions is counted as though it were two separate opinions.

2) A justice authors no opinion unless he or she specifies a reason for his or her vote. A bare citation to a previously decided case or a simple statement that the author concurs or dissents because of agreement with a lower court's opinion suffices as an opinion.

3) When a justice joins the substance of another justice's opinion, without any personal expression of views, that justice is listed as joining the other's opinion and not as an author. Thus, in *United States v. Havens*, 446 U.S. 620, Justices Stewart and Stevens are listed as joining Brennan's dissenting opinion notwithstanding that the pertinent language reads: "Mr. Justice Brennan, joined by Mr. Justice Marshall and joined in Part I by Mr. Justice Stewart and Mr. Justice Stevens, dissenting." 446 U.S. at 629. The opinion contains two parts of roughly equal length. Failure to list the latter pair as joiners would have required that they appear as dissenting without opinion, a manifestly inaccurate result. Similarly, Justice White's language in *Parratt v. Taylor*, 451 U.S. 527, at 545: "I join the opinion of the Court but with the reservations stated by my Brother Blackmun in his concurring opinion," is not listed as an opinion by White. He rather appears as joining Blackmun's concurrence. Conversely, where a justice, in his own words only partially agrees with the substance of one or more opinions authored by others, he or she is listed as an author. Two examples of Justice Stewart illustrate: "Mr. Justice Stewart dissents for the reasons expressed in Part I of the dissenting opinion of Mr. Justice Powell." (*Dougherty County Board of Education v. White*, 439 U.S. 32, at 47) "Mr. Justice Stewart concurs in the judgment, agreeing with all but Part II of the opinion of the Court, and with Part I of the concurring opinion of Mr. Justice Stevens." (*Jenkins v. Anderson*, 447 U.S. 231, at 241)

4) When two or more justices jointly author an opinion, a "2" will appear in the second column of each of those justice's 4-column variables. Joint authorship, however, does not include per curiam opinions. Hence, a jointly authored opinion can only be a dissent or a concurrence.

Two problems afflict efforts to specify votes: 1) whether the vote is a regular or a special concurrence, and 2) the treatment to be accorded a vote "concurring in part and dissenting in part." The former typically manifests itself when a justice joins the opinion of the Court "except for . . ." Because such exceptions typically tend to approach *de minimis* status, I treat them as regular concurrences. For example, Chief Justice Burger concurred in the opinion of the Court in *New York Gaslight Club, Inc. v. Carey*, except for "footnote 6 thereof." 447 U.S. 54, at 71. Similarly, Blackmun's agreement with the Court in *Pruneyard Shopping Center v. Robins*, except for "that sentence thereof. . ." 447 U.S. 74, at 88. Where the Reports identify a justice as concurring or "concurring in part," said justice is treated as a member of the majority opinion coalition (i.e., as = 3), rather than as merely concurring in the result (i.e., as = 4).

Whereas the preceding problem pertains to determining which type of concurrence a vote is, the problem with votes concurring and dissenting in part is whether they are special concurrences (= 4) or dissents (= 2). This matter was addressed previously in connection with variable 58 (vote not clearly specified). A vote concurring and dissenting in part is listed as a special concurrence if the justice(s) doing so does not disagree with the majority's disposition of the case. This may occur when: 1) the justice concurring and dissenting in part voices disagreement with some or all of the majority's reasoning; 2) when said justice disapproves of the majority's deciding or refusing to decide additional issues involved in the case; or 3) when in a case in which dissent has been voiced, the justice(s) concurring and dissenting in part votes to dispose of the case in a manner more closely approximating that of the majority than that of the dissenter(s).

In cases where determination of whether a vote concurring and dissenting in part is the former or the latter is not beyond cavil, a '1' will appear in the VOTEQ variable of the affected case to allow users of the database to make an independent judgment, if they are so minded. Note, however, that listing such votes as dissents (= 2) or special concurrences (= 4) has no effect on whether or not an opinion is written. A '1' (sole author) or '2' (co-author) will appear in the second column of the pertinent justice's variable – as well as in that justice's single column opinion (0) variable – regardless of whether a '2' (dissent) or '4' (special concurrence) appears in the first column of his or her variable.

The third and fourth columns of each justice's variable are used to identify the concurring and dissenting opinions with which the subject justice agreed, as are the parallel A1 and A2 single-column variables for each justice. These columns and variables, then, enable the interagreement matrix of each case decided by the Court to be mapped. Each justice has been assigned a letter of

the alphabet, as designated in the listing above, to indicate his or her agreement with the justice in whose variable or columns the designated abbreviation appears.

Accordingly, the appearance of a letter in the third column of any justice's 4-column variable or in that justice's A1 or A2 variables indicates that said justice agreed with a dissenting or concurring opinion written by the justice whose letter appears. If a second letter appears in the fourth column of a justice's variable, or in the A2 variable, that means that said justice agreed with the opinion of two different justices. A second join does not occur very frequently.

Still less frequent are cases in which a justice joins three other justices' opinions. An asterisk in the third column of the joining justice's 4-column and in the A1 variables specifies these situations. An asterisk in these same places also identifies the six instances when a justice wrote two opinions in a single case. Whether the asterisked justice wrote two opinions or joined the opinions of three other justices is clear from the behavior of the other justices.

It is necessary to break the 4-column variables down into their singular components because of the way SPSS searches through a data file. If we relied on the 4-column variable to identify the cases in which Justice Marshall agreed with a dissenting or concurring opinion of Justice White, we would have to specify all of the combinations of codes that could appear in all four variables when Marshall's third or fourth column contained a 'G' signifying White. SPSS is simply not equipped to pick out a 'G' anywhere in a multi-column variable.

**direction of the individual justices' votes
(MARDIR to STWTDIR, MAR2DIR to OCON2DIR)**

These variables, specify whether the individual justices voted liberally or conservatively at the final vote and the final conference vote on the merits.

**majority and minority voting by justice
(MARMAJ to OCONMAJ, MAR2MAJ to OCON2MAJ)**

These two variables specify whether the individual justices voted with the majority or in the minority at the final vote and the final conference vote on the merits.

RELIABILITY CHECK

Because all the variables in the expanded Burger Court database that appear in Allcourt have been subject to reliability testing, I subject only the preliminary and conference vote data to checking, along with the associated vote, date, and direction variables. Furthermore, these data involve no exercise of discretion, having been copied and totaled from the docket sheets of Powell, Brennan, and Douglas. Therefore, I deem it not inappropriate for me to have made both the original entry and the recoding. As noted in the introduction to the documentation of the database, I relied primarily on Powell's docket sheets. In the few cases in which his information is incomplete, I used Brennan's or Douglas's sheets.

Of the 2,374 orally argued Burger Court cites that contained at least one preliminary and one merits vote I randomly selected 200 for analysis (8.8 percent). Because the number of votes cast by the justices varies in the 200 selected citations, I report the results discursively rather than in a strictly statistical fashion.

In several cases an incorrect vote was reported that did not accord with the justices' behavior: a 52 certiorari vote should have been 42, a 51 should have been 41, and the first of two certiorari votes was listed as 44 rather than 40. In a number of other cases, the vote was correctly reported based on the incorrect identification of the votes of one or more of the justices. In still other cases, the vote was correctly reported notwithstanding the incorrect identification of the votes of one or more of the justices.

One error occurred in a vote field: no entry was made for a second certiorari vote, both of which were 18. One certiorari vote date was omitted and a second reported 5/19/72 instead of 6/17/72.

Because both the preliminary and merits votes fields consist of two entries, of which the first is the more controlling, I inaccurately reported or inadvertently omitted the second vote. Thus, five justices were reported as without a Q in the second of their certiorari vote fields, indicating that their vote was tentative; that they were not at rest. The other instances of an error in a justice's second vote field are: the omission of M (remand), and an S (dismiss); the replacement of an S with an M, the appearance of an R (reverse) in a second cell that should have been empty, and an R in place of an M in another justice's field, and two instances in the same case in which justices had an R in the second column that should have been empty. A variation on these patterns occurred when I assigned an M to the wrong justice, both of whose initial fields correctly showed an R. All of these errors—though such verge on the trivial.

More serious are incorrectly specified primary votes: Rehnquist received an R rather than an A (affirmed) in a merits vote that should have been 72 rather than 81. Burger received a D (deny) rather than a G (grant) in a 63 vote that should have been 72. Marshall shows a G in a case in which he did not participate; the vote, however, was correct (61). Three justices no longer on the Court (Douglas, Harlan, and Black) received G votes in a certiorari matter in place of Stevens, Rehnquist, and Powell. The votes of Marshall and White were

transposed on a nonfinal merits vote. O Connor was wrongly indicated as voting in an 09 certiorari action. She appeared as the tenth participant. Burger had a Q in place of a D in a case whose vote should have been 63, not 53. Blackmun was given a G rather than a D where the vote should have been 81 and not 90. Rehnquist rather than Stevens showed a U (relist) in a motion vote (votetyp=4). White revealed a typographical error in the first of two certiorari votes; the vote, however, was correct. Powell received a 3' rather than a G, a distinction without a difference in the case in question. But the assignment of an S rather than a 3' to Burger produced a vote of 63 rather than a 72. O Connor s merits vote was omitted in a correctly specified 81 vote. Stevens and Blackmun s certiorari votes were transposed: a G rather than a D, and vice-versa. Although the vote was correct, Blackmun received an R that should have been an A. Finally, if the most concentrated set of errors, Rehnquist, Powell, Blackmun, Stewart, and Burger were entered as noting jurisdiction instead of affirming. Accordingly, the vote was 45 rather than 90.

In sum, the sample found very few errors. None changed the direction of a decision, and in only 27 substantive instances was a justice s vote incorrectly specified: Rehnquist, Burger, and Blackmun four times each; Stevens three; Marshall, Powell, White, and O Connor two; and Stewart, Douglas, Harlan, and Black one apiece. Assuming that nine justices participated in each preliminary and merits vote and excluding multiples of such votes accuracy reaches 98.7 percent (27/1800).